

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 03/20/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties
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SPECIFY THE ISSUES to be argued.

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02562
CASE NAME: MARINER WALK CORPORATION VS. JULIAN TAYS
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JMT IF ENTERED
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by defendant Iris Corzo Cruz to set aside default and default judgment and to quash summons. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Mariner Walk Corporation ("Mariner") filed its complaint against defendant Iris Corzo Cruz and three other defendants on October 10, 2023. The complaint alleges a debt owed by Cruz to Mariner, a homeowners association for the community in which the property 50 Standley Court in Pittsburg (the "Property") is located. (Compl. ¶¶ 1, 4-6, 45-63 [7th, 8th, and 9th C/As]>) Mariner alleges Iris Corzo Cruz is the owner of the property, and Cruz concedes the property is her residence. The same address is listed on her motion.

On January 25, 2024, Plaintiff filed an application for an order for publication of the summons based on evidence that Plaintiff's process server had made multiple service attempts to effectuate personal service at the property without success and that despite Plaintiff's efforts, Plaintiff had not been able to locate an address for Cruz's employment or any other address where she might be located and served. (Appl. filed 1/25/2024 citing supporting evidence; Isherwood Decl. ISO Opp to Mtn. to Set Aside ¶ 3.) On February 13, 2024, the Court entered an Amended Order re: Publication of Summons ("Publication Order") authorizing Plaintiff to serve the summons by publishing a copy of the summons in the East Bay Times for four consecutive weeks. (2/13/2024 Order; Isherwood Opp. Decl. ¶ 3, Exh. B.) On March 18, 2024, Plaintiff filed a proof of service of the summons by publication, executed by a representative of the East Bay Times, showing a copy of the summons was published 2/22/2024, 2/29/2024, 3/7/2024, and 3/14/2024.

Cruz did not respond to the complaint after publication of the summons. Plaintiff applied for and obtained the default of Cruz, and her default was entered on May 29, 2024. (Isherwood Opp. Decl. ¶ 3, Exh. C.) A default judgment was entered against Cruz in favor of Mariner on December 2, 2024. (Isherwood Opp. Decl. ¶ 3, Exh. D.) The judgment was subsequently assigned to Allied Trustee Services. Cruz now moves to set aside the default and default judgment.

Legal Standards Applicable to the Motion and Related Analysis

To set aside the default and default judgment, defendant Cruz relies on two separate statutes to set aside the default and default judgment, as well as the Court's inherent power to set aside a void judgment, and Code of Civil Procedure § 418.10 to quash service of the summons. Plaintiff Mariner opposes the motion.

A. Relief under Code of Civil Procedure § 473.5 and Civil Code § 1788.61

As a preliminary matter, Plaintiff raises a strawman argument that the motion is time-barred under Code of Civil Procedure § 473(b) as it was filed more than six months after entry of the default and default judgment. That statute, however, is not the basis of Plaintiff's motion so the argument and authority are inapposite.

1. Statutory Grounds for Relief from Default and Default Judgment

Defendant moves under Code of Civil Procedure § 473.5 to set aside the default and default judgment entered against her. That statute provides that a party may move to set aside a default and default judgment entered against it "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action." (Code Civ. Proc. § 473.5(a).) The motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file

with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc. § 473.5(b) [emphasis added].) The Court "may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action" only upon a finding the motion was timely "and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(c).)

"Section 473.5, Code of Civil Procedure 1 is the successor statute to former section 473a. It permits the court to set aside a default or default judgment against a defendant and allow him to defend the action on its merits if (1) he received through no inexcusable fault of his own, no actual notice of the action in time to appear and defend, and had not made a general appearance; (2) a default or default judgment has been entered against him by the court; (3) he acted with reasonable diligence in serving and filing the notice of motion to set aside the default or default judgment; and (4) he has a meritorious defense. (Comment [to section 473.5] -- Judicial Council.)" (*Goya v. P.E.R.U. Enterprises* (1978) 87 Cal. App. 3d 886, 890-891.)

"A party seeking relief under section 473.5 must provide an affidavit showing under oath that his or her lack of actual notice in time to defend was not caused by inexcusable neglect or avoidance of service. [Citations omitted.]" (*Anastos v. Lee* (2004) 118 Cal. App. 4th 1314, 1319 [emphasis added].)

"Section 473a was not designed to afford relief to a defendant who with 'full knowledge' of constructive service upon him remains inactive. [Citation omitted.]" (*Brockman v. Wagenbach* (1957) 152 Cal. App. 2d 603, 611 [construing former statute, now Code Civ. Proc. ¶ 473.5].) Further, as Cruz's own memorandum confirms, whether to grant relief under Code of Civil Procedure section 473.5 is in the discretion of the Court. (*Id.*)

Civil Code § 1788.61 applies when an action is brought by a "debt buyer." The record before the Court shows that the action was brought by Mariner, the homeowners' association to which defendants owed their homeowners association dues. (Compl. ¶¶ 1, 4-6, 45-63; Judg. for Pl. entered 12/2/2024.) The Court records show that after judgment for Mariner was entered, the judgment debt was assigned to Allied Trustee Services, such that the action was not "brought" by the debt buyer. (See Decl. of Address Verification filed 5/16/2025 ¶ 3 [judgment assigned to Allied on January 16, 2025]; Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A, B.)

Even if Civil Code § 1788.61 did apply, the language and substantive grounds for obtaining relief for lack of actual notice of the action in time to defend, the requirements for the motion, and the grounds for the Court to find relief warranted are virtually identical to those of Code of Civil Procedure § 473.5(a)-(c). (See Civ. Code § 1788.61(b) and (c).)

2. The Motion Is Deficient, and the Evidence Does Not Support Granting Cruz Relief

The motion and declaration are not accompanied by, and do not otherwise show service of, the required proposed answer, motion, or other pleading in defense of the action if relief were to be granted. (Code Civ. Proc. § 473.5(b); Civ. Code § 1788.61(b).) The motion is defective and does not meet the statutory requirements in this respect. The language of the statute mandates inclusion of the proposed answer or other responsive pleading, and the Court cannot grant relief without substantial compliance with the statutory requirement. (*County of Stanislaus v. Johnson* (1996) 43 Cal.App.4th 832, 837-838 [addressing similar mandatory requirement for motion for relief under

Code of Civil Procedure § 473(b)].)

With regard to the necessary showing that Cruz had no actual notice of the lawsuit, that she was not evading service, and that her failure to respond was not the result of inexcusable neglect, Cruz states in her declaration that she "first learned about this lawsuit on or around late July 2025, even if the Notice of Levy shows a June 2, 2025 mailing date). The way [she] first learned about this lawsuit was by receiving a Notice of Levy through the mail from the Los Angeles [sic] County Sheriff's Department. I was not evading service, so my lack of actual notice of this case is not the result of evasion of service." (Cruz Decl. ¶ 2.) She states she would have answered but for these facts. (Cruz Decl. ¶ 3.) Cruz does not dispute that the Property is her address and argues that the Property address was the proper address for Mariner to attempt to effectuate service. (Cruz Decl. ¶ 1.)

In opposition to the motion, Plaintiff presents substantial evidence that Cruz was repeatedly sent mail notifications to the Property address spanning a period of approximately 16 months, none of which were returned to the senders. (Isherwood Opp. Decl. ¶¶ 3.a., 4, 5 and Exh. A; Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A and B.) Plaintiff's counsel has filed a declaration attesting that he personally mailed to Cruz at that address a copy of the summons and complaint with a notice of acknowledgement of service on November 13, 2023, that he personally reviews all incoming mail at his office, and that the mail he sent to Cruz on November 13, 2023 has never been returned. (Isherwood Opp. Decl. ¶¶ 3.a., 4, 5 and Exh. A.) Allied's Chief Operating Officer attests to two documents mailed by Allied to the same address in February and March 2025, neither of which were returned. (Jacoby Opp. Decl. ¶¶ 5, 6 and Exhs. A and B [mailings by Allied and records maintained in ordinary course of business].) The evidence is sufficient to invoke the presumption of Evidence Code § 641 that "A letter correctly addressed and properly mailed is presumed to have been received in the ordinary course of mail." (*See also Craig v. Brown & Root* (2000) 84 Cal. App. 4th 416, 421-422 ["When the foundational facts are established, a presumption affecting the burden of producing evidence obligates the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced to support a finding of its nonexistence--in which event the trier of fact determines the existence or nonexistence of the fact from the evidence and without regard to the presumption. (§ 604.) Although the presumption disappears where, as here, it is met with contradictory evidence, inferences may nevertheless be drawn from the same circumstances that gave rise to the presumption in the first place. [Citations omitted.]" (Emphasis added.)).)

Evaluating the evidence before the Court, Cruz makes conclusory statements denying actual notice of the lawsuit, but she does not deny the mailings from Mariner and Allied were delivered to her address or offer an explanation as to why she did not receive those mailings. Even if the presumption under Evidence Code § 641 disappears solely based on Cruz's conclusory statements, the Court finds that the totality of the evidence submitted by the parties is sufficient to support a finding of receipt of the mailings. "The disappearance of the presumption does not mean there is insufficient evidence to support the trial court's finding. *Brown & Root's* declarations and documents (mailing lists) are circumstantial evidence from which the court was entitled to infer that Craig had received the memorandum and brochure. ' ' [I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. *The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide*

whether or not the letter was received." ' [Citation omitted, italics in original.]" (*Id.* at 422.)

Given the voluminous number of items of mail sent to the address that Cruz concedes is her address, starting with the notice and acknowledgement with a copy of the summons and complaint in this action in November 2023, and multiple notices sent by Allied beginning in February 2025 regarding the entry of the judgment and the outstanding amounts owed to the homeowners association in the community in which her Property is located, it strains credulity that Cruz did not receive any of the multiple mailings advising her of the lawsuit, but only received the notice of levy regarding the suit in late July 2025 from the sheriff's department. One explanation is that she was evading receipt of notice by ignoring or discarding the mailings, or alternatively, she received the mailings but did not defend the action in any event. Similarly, Cruz admits she lives at the Property. Cruz offers no explanation of why no one was available to respond to the process server's attempts to personally deliver the documents on the five occasions listed in the process server's service attempts declaration.

The Court finds Cruz's declaration fails to establish that any lack of actual notice on her part was the result of excusable neglect or not her avoidance of notice. (*Pierson v. Fischer* (1955) 131 Cal. App. 2d 208, 212 [stating the predecessor statute to § 473.5 was not "designed to afford relief from judgments validly entered upon constructive notice to those 'who with full knowledge of such service upon them, by reason of receipt of a copy of the summons and complaint through the mail, remain inactive.' [Citation omitted.]"].) In the instant motion, Cruz had the opportunity to file a reply to respond to Mariner's and Allied's evidence regarding mailings notifying her of the action and the judgment, and she did not. Any reply from Defendant Cruz was due on March 13, 2026, five court days prior to the hearing on March 20, 2026. (Code Civ. Proc. § 1005(b).) As of the time of preparation of this ruling, no reply was filed.

Relief under Code of Civil Procedure § 473.5 is discretionary with the Court. (Code Civ. Proc. § 473.5(c) [court "may" set aside default or default judgment if proper showing is made].) The Court **denies** Cruz relief under Code of Civil Procedure § 473.5.

B. Void Judgment for Lack of Service

The Court has the inherent authority and explicit authority under Code of Civil Procedure § 473(d) to set aside a void judgment. (*Rogers v. Silvennan* (1989) 216 Cal. App. 3d 1114, 1122 overruled on other grounds regarding deadline for moving for relief from void judgment in *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal. 5th 207, 225.)

Defendant argues the judgment is void on its face "because no valid proof of service was filed." (MPA ISO Mtn. p. 5, ll. 27-28.) However, the Court's files reflect that there is a proof of service filed on March 18, 2024 showing service was accomplished by publication in accordance with the terms of the Publication Order. The proof shows the summons was published in the East Bay Times, a newspaper of general circulation approved by the Court for publication in the Publication Order, four times (2/22/2024, 2/29/2024, 3/7/2024, and 3/14/2024), consistent with the Publication Order requirement. Defendant does not cite any reason why the proof of service on file fails to comply with the Court's Publication Order.

To the extent Defendant contends the grounds for authorizing service by publication were not met, the Court disagrees. Service by publication is expressly permitted under Code of Civil Procedure §

415.50. The statute provides in relevant part: "A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that . . . : [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action." (Code Civ. Proc. § 415.50(a)(1) [emphasis added].)

Cruz argues that service by publication was improper because Plaintiff had "access" to her home address. (Cruz Decl. ¶ 1.) Service by publication was ordered, however, because Plaintiff filed a declaration showing its process server made five attempts to personally serve her at her home address (the Property where Cruz concedes service was proper) at different times of the day and on different days, and that the process server was unable to locate and serve her there. (Isherwood Opp. Decl. ¶ 3 and Exh. A [attaching Isherwood Decl. filed 1/25/2024 and Exhs. A and B re diligent service attempts, mailing of November 13, 2023 notice of acknowledgment, summons and complaint].) The application for service by publication was accompanied by evidence that the only available address Plaintiff had for Cruz was the Property despite attempts to locate alternative addresses for her where service might be attempted. (*Id.*)

Plaintiff was only required to show it exercised "reasonable" diligence to serve Defendant personally. Defendant has cited no authority or evidence that Plaintiff's efforts to serve her as attested in Isherwood Opposition Declaration, incorporating his prior declaration in support of the application to serve by publication, were legally or factually insufficient to show she could not be served "with reasonable diligence" at the only address known for Cruz. This satisfied Code of Civil Procedure § 415.50 to authorize service by publication. (*See also Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1318-1319 [affirming denial of § 473.5 motion where service was made by publication, and defendants' declarations were insufficient to show lack of notice was not caused by defendants' avoidance or inexcusable neglect].)

Cruz does not argue that there were other addresses where service should have been attempted other than the Property address. Cruz has not directed the Court to any deficiency in the application for the Publication Order. Cruz has not cited any authority to demonstrate that service by publication pursuant to the Publication Order was invalid under the circumstances or that there was any defect in the filed proof of service by publication. (Code Civ. Proc. § 415.50.) The default and default judgment are not void on that ground, and the Court **denies** Cruz relief based on the judgment allegedly being void.

C. Quash Service under Code of Civil Procedure § 418.10

Cruz also moves to quash service of the summons on her under Code of Civil Procedures § 418.10. The only ground she cites is that the Court lacks jurisdiction over her. (Mtn. pp. 6-8.) Cruz contends the Court did not obtain jurisdiction over her because service on her by publication was invalid, an argument the Court has rejected for the reasons set forth above. The Court finds service by publication pursuant to the Publication Order was proper and effectuated valid service under Code of Civil Procedure § 415.50. The Court also **denies** the motion to quash service under Code of Civil Procedure § 418.10 for these reasons.

2. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: CONTEST ADGFS
FILED BY: WILLIAMS, LINDA
TENTATIVE RULING:

Before the Court is Defendants Linda Williams and Compass California II, Inc.'s Motion to Contest Cross-Defendants OHD, Inc., DBA Keller Williams of East County and Johnny Hoang's Application for Order Determining Good Faith Settlement.

Cross-Defendants request judicial notice of the Zillow Price and Sale History of 11 Halten Ct., Pleasant Hill, California ("Zillow Report") citing Evidence Code section 452 subdivisions (d)(1) and (h). Subdivision (d)(1) allows for the judicial notice of records of any court of this state. The Zillow Report is not such a document.

Subdivision (h) allows for judicial notice of facts and propositions "that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Judicial notice under this subdivision is meant to "cover facts which are not reasonably subject to dispute and are easily verified ... [such as] facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter." (*Gould v. Maryland Sounds Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145.) "Simply because information is on the Internet does not mean that it is not reasonably subject to dispute." (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605 fn.10.) The Zillow report does not qualify under this subdivision either.

Cross-Defendants Request for Judicial Notice is **denied**.

Factual and Procedural Background

This action relates to issues surrounding the purchase of residential property located at 11 Halten Court (the "Property") by Plaintiffs in March 2022. Defendant Linda Williams was the seller's real estate agent for the transaction. Ms. Williams was employed by Defendant California Compass II, Inc. at all relevant times. (Ms. Williams and Compass California will be referred to as the "Compass Defendants".) The gist of the allegations relates to claims of defects in the Property related to water intrusion and determining who was responsible for disclosing issues related thereto.

The operative First Amended Complaint was filed on May 10, 2024, asserting intentional misrepresentation, negligence, and unfair competition (B&P 17200) claims. On March 17, 2025, a Doe Amendment was filed adding RW Williams as a Defendant and asserting only the third cause of action for unfair competition against it. RW Williams is alleged to have performed some of the 'cover up' work which concealed the underlying problems at issue in this matter.

The Compass Defendants filed a cross-complaint for equitable indemnity and contribution against Cross-Defendants OHD, Inc. (dba Keller Williams of East County) and Johnny Hoang on June 5, 2025. Keller Williams and Mr. Hoang were Plaintiff/Buyer's agents during the sale of the Property. They thereafter filed a cross-complaint against Cross-Defendant HomeGuard on July 11, 2025. It is alleged

that HomeGuard conducted a home inspection and roof inspection on the Property at the behest of Linda Williams.

On November 7, 2025, Cross-Defendants Keller Williams and Mr. Hoang (“Settling Parties”) filed an application for order determining good faith settlement. On December 1, 2025, the Compass Defendants filed a motion to contest the application for good faith determination. On December 2, 2025, Cross-Defendant HomeGuard filed a ‘joinder’ to the motion to contest.

Procedure for Determination of Good Faith Settlement

In accordance with California Code of Civil Procedure (“CCP”) §877.6, “a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order.” (CCP §877.6(a)(2) emphasis added.) “The application shall indicate the settling parties, and the basis, terms, and amount of the settlement.” (*Ibid.*) Thereafter, a nonsettling party may file a notice of motion to contest the good faith of the settlement. (*Ibid.*)

Standard

Code of Civil Procedure § 877.6 (a)(1) provides, in relevant part, “Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]” The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc., § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. §877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. That case identified six nonexclusive factors for making a determination of good faith settlement:

- (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at p. 499.)

A settlor’s percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-1264 The settling party must present sufficient admissible evidence that will allow the Court to

evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving “that the settlement is so far ‘out of the ballpark’ in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute.” (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.)

Analysis

The Compass Defendants contend that the request for determination of the good faith of the settlement is premature as they have been unable to complete discovery of the Settling Parties to date. As outlined above, the original complaint was filed on October 20, 2023, and did not include any claims against the Settling Parties. The Settling Parties were not brought into this matter until June 5, 2025, when the Compass Defendants filed their cross-complaint for indemnification/contribution against them. The Settling Parties formally appeared in the matter on August 8, 2025, when they filed their answer.

The Compass Defendants served written discovery demands upon the Settling Parties on November 2, 2025. (Rayfield Decl. ¶ 6.) To date, no responses have been received. (*Ibid.*) They have also attempted to schedule the deposition of Mr. Hoang but have been unable to have that take place. (*Id.* at ¶ 7.) Before they have been able to obtain any discovery from the Settling Parties, the Settling Parties filed their Application for Determination of Good Faith Settlement. As such, the Compass Defendants request a continuance until they can complete this initial discovery directed toward the Settling Parties.

It is appropriate “for the objecting nonsettlor to move for a continuance of the hearing, if necessary, for the purpose of gathering facts, which could include further formal discovery to support its statutory burden of proof as to all *Tech-Bilt* factors nonsettlors placed in issue in order that the matter can be fully and fairly litigated.” (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1265.) “This rule shall apply to all contested good faith settlement hearings, no matter which of the *Tech-Bilt* factors are in issue.” (*Ibid.*)

There are at least two main factors that Cross-Defendants believe are at issue: (1) the proportionality of the settlement amount relative to potential liability, and (2) the existence of collusion between the Settling Parties and Plaintiffs. While the Compass Defendants make a few arguments related to both factors, they believe that they should have an opportunity to at least complete the pending discovery before the Court rules on the motion. Allowing for this discovery to be completed “will ensure that the expanded scope of the hearing dictated by *Tech-Bilt* will be followed, the evidence will be intelligently assessed, and the objectives of *Tech-Bilt* will be attained.” (*City of Grand Terrace*, *supra*, 192 Cal.App.3d at 1251.)

While *City of Grand Terrace* discusses continuing the motion to allow for the discovery, at least one respected treatise notes that the court “may deny the motion without prejudice to being refiled after completion of discovery needed to ensure all parties have the same information required to evaluate the settlement.” (Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) ¶ 12:876 *Comment*, p. 106.) This appears to be the better course of action to allow the parties to complete the required discovery, then the Compass Defendants can re-file their contest motion with the benefit of the additional discovery. The Settling Parties can then oppose with access to the same information.

Conclusion

The Compass Defendants' motion to contest the application for order determining good faith settlement is **denied without prejudice**. Compass Defendants shall re-file their motion to contest after the initial written discovery which has already been served on the Settling Parties has been received and the deposition of Mr. Hoang has been completed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
HEARING IN RE: JOINDER TO MOTION TO CONTEST ADGFS
FILED BY: HOMEGUARD INCORPORATED, A CALIFORNIA CORPORATION
TENTATIVE RULING:

See Line 2.

4. 9:00 AM CASE NUMBER: C23-03069
CASE NAME: THERESA SULLIVAN VS. MICHELLE COLETTI
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**
FILED BY: COLETTI, MICHELLE
TENTATIVE RULING:

The unopposed motion of Defendant Coletti to file the Cross-Complaint attached as Exhibit A to the Declaration of Scott E. Radcliffe filed herein on August 4, 2026 is **granted**. Defendant to file the Cross-Complaint within 10 days of service of entry of this order.

5. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
***HEARING ON MOTION IN RE: AN ORDER FINDING MATTHEW C. MATERAZO IN CONTEMPT OF COURT.**
FILED BY:
TENTATIVE RULING:

Notice of withdraw of Motion was filed by Plaintiff's counsel. Motion hearing is vacated.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
***HEARING ON MOTION IN RE: MOTION TO CONSOLIDATE HEARINGS FOR LONG CAUSE SETTING AND FOR COURT REPORTER**
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone

of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on the motion to consolidate hearings.

7. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: VACATE VOID UNDER CCP 473 DUE TO FRAUDULENT SERVICE AND DEPRIVATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on this motion.

8. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: FOR RECONSIDERATION OF ORDER GRANTING DEF'S MOTION TO COMPEL ARBITRATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Theodore-Josheph Vigil's Motion for Reconsideration of the July 18, 2025, Order granting Defendant Future Ford of Concord's Motion to Compel Arbitration.

For the reasons explained below, **Plaintiff's Motion for Reconsideration is denied.**

Procedural Background

This case is about alleged predatory lending practices surrounding the purchase of a 2022 Ford Explorer ST that took place on September 19, 2024. (Complaint at pp.2-6.)

Plaintiff filed this suit against Defendant on January 8, 2025. Plaintiff then filed a First Amended Complaint ("FAC") on February 14, 2025. Defendant filed its Motion to Compel Arbitration on March 21, 2025.

On May 1, 2025, in response to Plaintiff's written discovery and given the fact that the motion to compel arbitration had been filed and the hearing was set for after the discovery would be due, Defendant filed an ex parte application for an order staying the case pending resolution of its motion to compel arbitration which was granted with the caveat "except discovery related to motion" ie the parties were allowed to conduct narrowly tailored discovery for related to the motion to compel arbitration. (Crowell Decl. ¶ 3, Ex. B.)

Defendant's Application was granted and filed with the Court, but Defendant failed to serve the signed order on Plaintiff. According to Defendant's counsel, Plaintiff was present at the Ex-Parte hearing and Plaintiff was given the option to wait for counsel to provide a hard copy at the courthouse or to obtain the order once it was available online. (Crowell Decl. ¶¶ 10-14.)

On August 14, 2025, Defendant's counsel emailed Plaintiff a letter offering the opportunity to propound discovery related to the motion to compel arbitration as provided by the Ex Parte Order. (Crowell Decl. ¶ 15-16, Ex. B and H.) Plaintiff did not serve any discovery in response to Defendant's counsel August 14, 2025, letter. (Crowell Decl. ¶ 17.)

Request for Judicial Notice

Defendant requests judicial notice of two documents from the United States District Court, Eastern District of California, Case No. 2:25-CV-0629 DAD AC PS. The first document, Exhibit F, is Plaintiff's original Complaint, and Exhibit G, is an Order Adopting Findings and Recommendations, Dismissing Plaintiff's Complaint and Denying Motion for a Temporary Restraining Order and Preliminary Injunction. The case filed in the Eastern District is a case filed by Plaintiff in federal court with substantially similar facts and allegations against Defendant. The Court may take notice of both exhibits under Evid. Code § 452(d) because both documents are records of a United States Court.

While judicial notice may be taken of the *existence* of court records, "the truth of matters asserted in such documents is not subject to judicial notice." (*OneTaste Inc. v. Netflix, Inc.* (2025) 116 Cal.App.5th 174, 195, citing *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Therefore, the Court is taking judicial notice of the existence of both District Court filings but is not taking judicial notice of the truth of the contents of the documents. (*Magnolia Square Homeowners Ass'n v. Safeco Ins. Co.* (1990) 221 Cal.App.3d 1049, 1056-57.) Defendant's requests are unopposed and **granted**.

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, "based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states

"what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

A trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 ("Brown").) "This authority derives from the judiciary's fundamental, constitutionally mandated function to resolve specific controversies between the parties." (*Brown*, 47 Cal.4th at 1248.)

Analysis

Plaintiff Does Fail to Present Any New Facts, Circumstances or Law

Plaintiff argues new facts and circumstances and does not include any argument of new laws.

In the August 11, 2025, Order granting Defendant's Motion to Compel Arbitration, the Court pointed out the proof of service of the Ex-Parte Application which included a proposed order indicated that Plaintiff was served on April 25, 2025. (Motion at p. 3: 14-18.) Plaintiff complains he never received notice of the Entry the signed order granting Defendant's May 1, 2025, Ex-Parte Order to stay the case except for "discovery related to the motion" i.e. the motion to compel arbitration. (Crowell ¶ 11; Ex. B.)

As Defendant points out, this is not a new fact as Plaintiff admits that he raised this issue at the July 18, 2025, hearing. (Opposition at p. 6: 14-19; citing Motion at p. 3: 14-23.)

A motion for reconsideration must be supported by "new or different facts, circumstances or law." (CCP § 1008(b).) The party seeking reconsideration must base its motion "upon newly discovered facts, circumstances, or law." (*The New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 208.) The moving party must also provide "a satisfactory explanation for the failure to make the showing at or before the time the challenged order was issued." (*Id.*) "The information must be such that the moving party could not, with reasonable diligence, have discovered or produced it." (*Id.* at 213.) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Plaintiff wholly fails to satisfy this burden.

Defendant's Failure to Provide Notice of the Ex Parte Order Does Not Prejudice Plaintiff Right to Limited Discovery Concerning the Arbitration Motion

Plaintiff argues that Defendant's failure to serve the signed May 1, 2025, Ex-Parte Order constituted a due process violation that deprived Plaintiff of his constitutional right to notice and opportunity to respond, effectively forcing Plaintiff into an arbitration process without legal notice of the stay. (Motion at p. 4: 3-9.) Plaintiff contends that the Court's ruling mischaracterizes Plaintiff's ability to respond or challenge the arbitration motion, wrongly presumes that key order was served, and unfairly penalizes Plaintiff for not conducting discovery that was explicitly stayed.

First, Plaintiff was present at the Ex-Parte hearing and received actual notice of the ruling specifically including the court's allowance of discovery related to the motion. (Crowell Decl. ¶¶ 10-11.) Second, after the hearing, Defendant's counsel offered to provide Plaintiff with a conforming copy of the order and advised Plaintiff that the order would be available online. Plaintiff left the hearing without requesting a conformed copy of the signed order. (Crowell Decl. ¶ 12.) Third, Plaintiff's right to

discovery regarding the Motion to Compel Arbitration was not dependent on the Notice of Entry of Order of the May 1, 2025, Ex Parte ruling. Plaintiff had the right to conduct such discovery before the May 1, 2025 and after the May 1, 2025 hearing. Plaintiff was present at the May 1, 2025 hearing when the court preserved and pronounced his right to conduct such discovery in its ruling. Fourth, on August 14, 2025, Defense counsel Crowell emailed Plaintiff offering him “the opportunity to propound discovery “related to the motion.” Plaintiff did not serve any discovery regarding the motion to compel arbitration in response to Defense Counsel’s invitation. (Crowell Decl. ¶15, Ex. H) The court finds Plaintiff was not prejudiced as to his right to conduct discovery on the issue of the motion to compel for want of service of Notice of the Entry of the May 1, 2025 ruling.

“Where the litigant starts the discovery process without prior court intervention [the] burden is then on the party seeking to deny that right.” (*Kramer v. Superior Court of Los Angeles County* (1965) 237 Cal.App.2d 753, 759, citing *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal.2d 355, 379.) While Defendant was able to stay the case as to all other topics of discovery, Plaintiff always had the right to discovery related to the Motion to Compel Arbitration and the May 1, 2025, Ex Parte only confirmed is pre-existing right to do so. Thus, the failure of Defendant to serve Defendant with the signed May 1, 2025, Ex Parte order did not infringe on his right to conduct discovery regarding the Motion to Compel Arbitration. It is also noteworthy that Plaintiff does not complain of any unanswered discovery responses related to the motion to compel arbitration.

Conclusion

Based on the above, **Plaintiff’s Motion for Reconsideration is denied.** The matter remains stayed in view of the referral to arbitration.

9. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer filed by defendant County of Contra Costa County is **sustained without leave to amend**. The motion to strike is **denied as moot**. County shall prepare a proposed judgment, separate from any order on this motion, send to plaintiff for approval as to form, and submit to the Court.

I. Factual Background

The First Amended Complaint at issue here (“FAC”) involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-014-5) was purchased in February of 2014 while the other (APN 264-081-013-7) was purchased in February of 2016. (See FAC, ¶¶1, 10.)

Plaintiff contends, essentially, that the County sold him the parcels despite lack of an easement. (FAC, ¶¶7-9.)

Plaintiff filed his complaint against the County on January 29, 2025, alleging four causes of action (labeled “(1) Property Sale With Incorrect Title Deed and Disclosures; (2) Sale of Landlocked

Property; (3) Incorrect Processing of Refund Claim Filed with Contra Costa County Board of Supervisors; and (4) Loss of Money Due to Negligence). The Court sustained a demurrer to the initial complaint, with leave to amend, after a hearing on October 24, 2025.

Plaintiff filed his FAC on October 28, 2025, setting forth five causes of action as follows: (1) Refund/Rescission -Rev. & Tax. Code §§3729 & 3731; (2) Tax Refund/Cancellation - Rev. & Tax. Code §§ 5096-5097; (3) Traditional Mandamus - CCP § 1085 (Failure to Proceed as Required by Law); (4) Declaratory Relief – CCP § 1060; and (5) Inverse Condemnation.

After meeting and conferring with plaintiff (see Declaration of Jaskiran K. Samra in Support of Demurrer), as required by Code of Civil Procedure, section 430.41, the County filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), and California Revenue and Taxation Code section 3691 *et seq.*, which plaintiff opposes.

II. Evidentiary Matters

The County requests judicial notice of the following documents, which is **granted**:

Exhibit A –November 18, 2025 Order After Hearing on the initial demurrer in this case;

Exhibit B – Letter dated March 14, 2014, from City of Orinda to plaintiff;

Exhibit C – E-mail correspondence between plaintiff and County staff between February and March of 2016; and

Exhibit D –Alleged Code Violation Response by City of Orinda dated October 30, 2018.

Plaintiff objects to notice with respect to Exhibits B-D, arguing they are not the proper subject of judicial notice. These same exhibits were previously submitted by plaintiff in a request for judicial notice filed in support of his opposition to the previous demurrer. The Court granted judicial notice at his request. Accordingly, the objection has been waived.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. County's Contention that Plaintiff Amended Beyond the Scope of the Previous Order

The County demurs in part based on plaintiff having exceeded the scope of the Court's order on the previous demurrer. The order sustained the demurrer in full, and did not direct any particular sort of revisions that might salvage plaintiff's causes of action. Accordingly, plaintiff had sufficient justification to attempt to state a claim under whatever theory he might be able to do so. While generally true that a plaintiff may amend the complaint only as authorized by the Court, and may not amend the complaint to add a new cause of action without permission (*Harris v Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023), here, the Court has considered each new cause of action on its merits. Notwithstanding such consideration, none of the causes of action state sufficient facts to overcome demurrer.

B. Timeliness

As stated in the Court's order on the previous demurrer, plaintiff's only remedies are those set forth in the California Revenue and Taxation Code. (See, e.g., *Ribeiro v. County of El Dorado* (2011) 195 Cal.App.4th 354, 357.) Plaintiff is nevertheless not entitled to those remedies because he failed to petition the County for rescission within a year after the tax deeds were executed (in 2014 and 2016), or even within a year of being on notice of any potential claims, further discussed below.

Under Revenue and Taxation Code, sections 3711, 3725–3731, a tax sale purchaser may rescind the sale when the foreclosing public entity commits fraud, when the sale is invalid, or when an irregularity in the taxation or sale proceedings occurs.

As to the procedure for raising such a challenge, Revenue and Taxation Code, section 3725, subdivision (a) provides as follows:

A proceeding based on alleged invalidity or irregularity of any proceedings instituted under this chapter can only be commenced in a court if both of the following are satisfied:

- (1) The person commencing the proceeding has first petitioned the board of supervisors pursuant to Section 3731 *within one year of the date of the execution of the tax collector's deed.*
- (2) The proceeding is commenced within one year of the date the board of supervisors determines that a tax deed sold under this part should not be rescinded pursuant to Section 3731.

(Emphasis added.)

Section 3725 further excludes tax sale challenges from the Code of Civil Procedure sections addressing statutes of limitations. (*Id.*, at subd. (b).)

Plaintiff did not petition the County “within one year” of either execution of the deed for the parcels he acquired. It logically follows that the Board of Supervisors also never made the determination that his tax deed should not be rescinded (nor does plaintiff plead this).

Plaintiff did not petition the County until July 2024, following litigation against neighboring property owners. July 2024 is approximately ten years after the first tax collector's deed was executed on March 18, 2014, and eight years after the second tax collector's deed was executed on March 11, 2016. (See Request for Judicial Notice in Support of Plaintiff's Opposition to Demurrer, filed September 22, 2025, Exhibit B [Final Statement of Decision in C22-00619], hereinafter “Statement of Decision,” at 3:21-4:11.)

In its order on the previous demurrer, the Court effectively invited plaintiff to provide authority that might support application of the discovery rule to Revenue and Taxation Code, section 3725, but plaintiff has failed to do so. The County also reports having found no such authority. (Reply in Support of Demurrer, filed March 13, 2026, 4:14-16.) Still, assuming the discovery rule might apply in appropriate cases, this case does not satisfy any delayed discovery by plaintiff of his potential title defects. At the latest, plaintiff knew about the defects when he filed Contra Costa Superior Court Case C22-00619 in 2022, seeking declaratory relief over the existence of the easement.

The likely date of accrual dates back much earlier. As previously noted by the Court, plaintiff made an inspection of the parcels in March 2014 and noted that the paved road ended at a neighboring property. At that time, his neighbor insisted that the neighbor's property encroached upon plaintiff's easement so the easement had ceased to exist. (See Statement of Decision at 4:19-

5:11 [referring to numerous email exchanges in March of 2014 between plaintiff and neighbor].) This constituted notice to plaintiff sufficient to trigger time limitations for plaintiff's time to petition the County.

While the reasonableness of a delay can be a question of fact (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797), it can also be determined as a matter of law in cases where the undisputed facts show the requisite notice. (*65 Butterfield v. Chi. Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054-1055 ["it is the discovery of facts, not their legal significance, that starts the statute"].)

Further, plaintiff's arguments related to the significance of Judge Weil's August 2025 ruling are misplaced. The ruling, submitted as Exhibit B to the Request for Judicial Notice in Support of Plaintiff's Opposition to Demurrer, filed September 22, 2025, was in response to a late claim petition filed by plaintiff. Plaintiff had filed a claim against the County, and the County had rejected the claim as untimely. Plaintiff petitioned the Court for leave to submit a late claim, but Judge Weil ruled that the petition was moot. The reasoning was because the claims brought pursuant to the Revenue and Taxation Code were exempt from the claim filing requirements in the Government Claims Act. As for the other causes of action, Judge Weil's ruling does not address the sufficiency, just their timeliness, if they existed. As noted above, the Revenue and Taxation Code remedies are the exclusive avenue for relief in the context of tax sales like those in this case. Accordingly, any mention of the "discovery date" in that ruling does not control here.

The demurrer is sustained on the ground of untimeliness to each cause of action.

C. Voidness

The County argues plaintiff cannot establish that the tax deeds are void (as he would be required to do in order to obtain a refund under Rev. & Tax. Code, § 3729). Plaintiff's allegations still do not amount to fraud, which the previous order correctly noted is one basis on which tax sale deeds can be voided if timely challenged.

The demurrer is further sustained on this ground.

D. Leave to Amend

The demurrer is sustained in its entirety without leave to amend. Though plaintiff asserts he has added allegations that cure the issues previously identified by the Court, the facts are still insufficient. Plaintiff's opposition, while noting leave to amend should be liberally granted, does not provide any additional facts to change this result. (See, e.g., *Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 ["the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading"].) Plaintiff purchased the parcels in 2012 and 2016. At the latest, Plaintiff knew about the issue with the easement in 2022, when he filed a case in this court in 2022 seeking declaratory relief over the existence of the easement. He cannot turn back the clock on the filing of the instant action on January 29, 2025. It does not seem likely that he can allege additional facts to defeat the one year statute mandated by Revenue and Taxation Code § 3725. If plaintiff intends to contest this ruling, he shall come prepared to discuss any proposed additional facts that would cure the defects noted herein.

10. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 9.

11. 9:00 AM CASE NUMBER: C25-01753
CASE NAME: HAROLD KUSHINS VS. JAY UTAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Kenneth Walker ("Defendant") brings the instant demurrer to the complaint of plaintiffs Harold Kushins, Michelle Kushins, A. Timothy Gamber, Helen Kwong, Susan Kwong, Ann Norton, Douglas Norton, and William Walls ("Plaintiffs"). Plaintiffs' complaint asserts three causes of action against Defendant: (1) breach of fiduciary duty; (2) negligence; and (3) fraud. (Complaint, pp. 6-8, ¶¶ 25-43.) Defendant argues that that Plaintiffs' complaint fails to state facts sufficient to constitute a cause of action. (Demurrer, p. 3.)

For the reasons discussed below, the Court's tentative ruling is to **OVERRULE** Defendant's demurrer as to the second cause of action for breach of fiduciary duty and the fourth cause of action for negligence and **SUSTAIN** Defendant's demurrer as to the third cause of action for fraud. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code of Civ. Proc. (CCP), § 472b; California Rules of Court (CRC), rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Tom R. Normandin Supp. Decl., ¶¶ 1-2; CCP, § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v.*

Great W. Bank (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background: Facts Alleged in Complaint

On June 20, 2025, Plaintiffs filed the operative complaint in this matter, which alleges claims against Defendant for breach of fiduciary duty, negligence, and fraud.

In early 2021, defendants Manning-Nextbay LLC (“Nextbay”) and Jay Utal (“Utal”), developed a plan to build houses and associated infrastructure on about 32.1 acres of land (the “Property”), most of which was located in Richmond, California. (Complaint, ¶ 6.) On April 6, 2021, Nextbay and Utal submitted a development plan to the City of Richmond for the Property. (*Id.* at ¶ 7.) Also on April 6, 2021, the city of Richmond changed the zoning of the Property from residential hillside to hillside open space. (*Id.* at ¶ 8.) On May 13, 2021, Nextbay and Utal and several others, filed a petition for writ of mandate in Contra Costa Superior Court seeking to overturn the zoning change (the “Lawsuit”). (*Id.* at ¶ 9.) In the Lawsuit, Nextbay and Utal argued that unless the zoning change was reversed, the Property would be useless and worthless. (*Ibid.*) None of the defendants in this matter informed Plaintiffs of the Lawsuit. (*Id.* at ¶ 10.)

Around September 2021, Defendant, on behalf of co-defendant Sun Pacific Mortgage and Real Estate, hired CBRE, which hired Timothy O’Reagan, to prepare an appraisal for the Property to be used in evaluating the risk for Plaintiffs’ investment. (Complaint, ¶ 11.) The appraisal did not mention the Lawsuit but did discuss the zoning change and in regards to that concluded that the project that was submitted prior to the zoning change, such that the planned development had “vested” against any post-submittal zoning changes by Richmond. (*Ibid.*) Based on this, the appraisal concluded that the Property was worth \$3.7 million. (*Id.* at ¶ 12.) Based on the appraisal, Plaintiffs and Dimitrios Zahariudakis, funded \$1,140,000 of the \$1,170,000 loaned to codefendants Nextbay and Utal to purchase the property. (*Id.* at ¶ 15.) Plaintiffs secured their loan by a deed of trust on the Property. (*Ibid.*) About a year later, Nextbay and Utal defaulted on the loan, failing to pay anything. (*Id.* at ¶ 18.) Plaintiffs foreclosed on the deed of trust on June 28, 2023. (*Id.* at ¶ 19.) The Lawsuit was eventually decided against Nextbay and Utal, meaning the zoning change was affirmed and applicable to the Property. (*Id.* at ¶ 20.) This means that, as of the 2021 Appraisal, the Property subject to the Open Space zoning change, was only worth \$1.1 million. (*Id.* at ¶ 21.)

Discussion

Court Denies Request for Judicial Notice

Defendant requests that the Court take judicial notice of a Trustee’s Deed Upon Sale pursuant to Evidence Code § 452, subdivision (h) and *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 803. (Request for Judicial Notice ISO Demurrer [“RJN”], p. 1:23-27.) *West* cites *Ragland v U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194, for the proposition that “[a] court may take judicial notice of a recorded grant deed.” (*West v. JPMorgan Chase Bank, N.A., supra*, 214 Cal.App.4th at 803.) *Ragland v U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, provides that “[a] recorded deed is an official act of the executive branch, of which this court may take judicial notice,” under Evidence Code section 452(c). (*Id.*, at p. 194.)

Here, Defendant has not requested judicial notice under Evidence Code § 452(c), but rather § 452(h). (RJN, p. 1:23-27.) Evidence Code § 452(h), provides that “[j]udicial notice may be taken of . . . Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” However, a Trustee’s Deed Upon Sale is not capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. For example, this Court has no way of fact checking this, let alone with any immediacy. Thus, judicial notice cannot be taken under §452(h).

The proper mechanism by which to request judicial notice of a recorded deed is Evidence Code § 452(c), as provided for in *Ragland*. (*Ragland v U.S. Bank National Assn.*, *supra*, 209 Cal.App.4th at 194.) Evidence Code § 452(c), provides that “[j]udicial notice may be taken of . . . **Official** acts of the legislative, executive, and judicial departments of the United States and of any state of the United States” (emphasis added).

The court may not take judicial notice of the deed pursuant to § 452(c), because the document does not appear to be an official act of the government. The document proposed for judicial notice bears the following language on three sides of the document, “Not for Official Use: This copy has not been QUALITY ASSURED.” (RJN, Exh. A.) The document has another stamp on it that states, “ACCOMODATION This Document delivered to Recorder As an accommodation only at the Express request of the parties hereto. It has not been examined as to its effect or validity.” (*Ibid.*)

The Court is hard pressed to imagine a more “official” use for a document than seeking to rely on it as evidence in a court of law to dismiss a litigant’s legal claims. Defendant, perhaps mindful of this, included a declaration in support of the demurrer that offered a testimonial explanation of this warning and an opinion that despite obtaining the document from a private database operated by a private company, that the attached record is what appears in the public record:

The Trustee’s Deed Upon Sale attached as Exhibit A to the Request for Judicial Notice bears the header “Not for Official Use: This copy has not been QUALITY ASSURED.” Nevertheless, this is a true and correct copy of the actual recorded document. I obtained this copy from the RealQuest database by CoreLogic, a subscription-based title database that provides access to county recorder records and document images throughout California, and which is relied upon by title insurers, escrow companies, and other real estate professionals for true and correct copies of recorded instruments. I do not know what the header means, but this is the document that appears in the official public record.

(Declaration of Tom R. Normandin ISO Demurrer, ¶ 3.)

The Court cannot consider evidence outside the pleading or matters that may be judicially noticed when ruling on a demurrer. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) Thus, paragraph 3 of Tom R. Normandin’s declaration cannot be considered in relation to the demurrer.

As Defendant requested judicial notice under the permissive statute, Evidence Code § 452, this Court is not mandated to grant Defendant’s request for judicial notice. The request for judicial notice does not meet the requirements of either 452(c) or 452(h). Thus, the Court **DENIES** Defendant’s request for judicial notice.

Defendant's Reliance on the Full Credit Bid Rule is Unavailing

Defendant argues that the full credit bid rule bars all of Plaintiffs' claims. (Demurrer, pp. 6-7; Reply, pp. 1-2.) The full credit bid rule is described as follows.

A "full credit bid" is a bid "in an amount equal to the unpaid principal and interest of the mortgage debt, together with the costs, fees and other expenses of the foreclosure." [Citation.] If the full credit bid is successful, i.e., results in the acquisition of the property, the lender pays the full outstanding balance of the debt and costs of foreclosure to itself and takes title to the security property, releasing the borrower from further obligations under the defaulted note.

(*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1238.)

In order to establish that the transaction at issue constituted a full credit bid, Defendant relies on the Court's taking judicial notice of the Trustee's Deed Upon Sale attached as Exhibit A to the Request for Judicial Notice. Because the Court denied the Request for Judicial Notice of the Trustee's Deed Upon Sale, Defendant's argument based on the full credit bid fails.

Plaintiffs argue that the full credit bid rule does not immunize Defendant from liability for fraud, which is an exception from the full credit bid rule. (Opposition, pp. 2-6.) While this appears to be a correct statement of the law, it cannot be evaluated at this time because the Plaintiffs' fraud claims lack the requisite specificity to overcome the demurrer, as discussed below. (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1251 ["We conclude that Alliance's full credit bids do not as a matter of law bar its fraud claims against defendants."].)

The court **OVERRULES** Defendant Walker's argument that the full credit bid rule bars all of Plaintiffs' claims against him.

Business & Professions Code §10232.6 Does Not Apply Here Based on the Facts Before the Court

Defendant argues that all of Plaintiffs' claims are barred by a safe harbor for real estate brokers set out in Business & Professions Code §10232.6. (Demurrer, pp. 7-8; Reply, pp. 2-3.)

Business & Professions Code § 10232.6, provides:

(a) A real estate broker, acting within the course and scope of his or her license, who arranges for or engages the services of an appraiser licensed or certified by the Office of Real Estate Appraisers for the applicable transaction, and delivers the resulting appraisal to the prospective lender and prospective purchaser as required by Section 10232.5, has met the broker's obligation of full and complete disclosure solely pursuant to paragraph (2) of subdivision (a) of Section 10232.5 and paragraph (2) of subdivision (b) of Section 10232.5, and is not required to provide a separate estimate of fair market value under Section 10232.5.

Thus, in sum, a real estate broker who acts within the course and scope of their license, engages the

services of an “appraiser licensed or certified by the Office of Real Estate Appraisers,” and delivers the resulting appraisal to the prospective lender and purchaser, has met their obligation of disclosure under paragraph (2) of subdivision (a) and paragraph (2) of subdivision (b) of Section 10232.5. (*Ibid.*)

Plaintiffs argue that this code section does not immunize Defendant from fraud, and that the appraisal has nothing to do with Defendant’s concealment of the Lawsuit or misrepresenting the value of the property. (Opposition, pp. 6-9.)

The flaw in Defendant’s argument is that the complaint does not allege that Defendant Walker is or was a real estate broker -- the statute applies only to real estate brokers. (Bus. & Prof. Code, § 10232.6, subd. (a); Complaint, ¶¶ 1-63.) Defendant Kenneth Walker is alleged to be “an individual, a citizen of the State of California, and at the relevant time, the principal representative of Sun.” (Complaint, ¶ 2(d).) Even if the complaint did allege that Defendant was a real estate broker, it does not allege that he was “acting within the course and scope of his or her license” when the actions giving rise to Plaintiffs claims occurred. These facts must be alleged or judicially noticed for Business & Professions Code § 10232.6 to apply. For the purposes of a demurrer, “facts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.)

For the reasons stated above, the court **OVERRULES** Defendant’s argument that Business & Professions Code § 10232.6 bars Plaintiffs’ claims.

Plaintiffs’ Fraud Claim is Not Sufficiently Pled

Defendant Walker argues that Plaintiffs’ fraud claim is not pled with the requisite specificity as to him. (Demurrer, pp. 8-9; Reply, pp. 3-4.)

In general, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc.* (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “‘how, when, where, to whom, and by what means the representations were tendered.’” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

Plaintiffs’ response that pleading rules are not so strict as to specificity when the fraud stems from non-disclosure fails to save this cause of action because Plaintiffs allege *both* intentional misrepresentation *and* concealment as to Defendant Walker: “Sun and Walker each **intentionally misrepresented** or withheld information about the zoning change from investor-Plaintiffs so that Sun and Walker would profit from the Loan transaction.” (Complaint, ¶ 35, emphasis added.) The complaint does not contain the requisite, who, when, where, why, how, etc., for the alleged intentional misrepresentation (Complaint, ¶¶ 1-64). As to Defendant Walker, nothing specific is alleged as to what specifically he knew (over and above what was disclosed), or what misrepresentation he made, or how, when, where and by what means he failed to disclose material information. Plaintiffs must add specifics related to this allegation of intentional misrepresentation or remove it from the complaint.

The Court **SUSTAINS** Defendant's demurrer to Plaintiffs' fraud cause of action, with leave to amend.

Ruling on the Demurrer

The Court **OVERRULES** Defendant's demurrer as to the second cause of action for breach of fiduciary duty and the fourth cause of action for negligence and **SUSTAINS** Defendant's demurrer as to the third cause of action for fraud **with leave to amend**. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

12. 9:00 AM CASE NUMBER: C25-03004
CASE NAME: K. H. VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON PLEADINGS**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Defendant Contra Costa County's motion for judgment on the pleadings is **granted without leave to amend** as to the first amended complaints filed by K.H. and C.M.

The County filed a motion for judgment on the pleadings arguing that the claims are barred by discretionary immunity under Government Code section 820.2. The County also argues that the complaint is uncertain under Code of Civil Procedure section 430.10(f).

The County filed a motion for judgment on the pleadings as to all claims asserted by Plaintiffs C.M. and K.H. Plaintiffs filed separate lawsuits in Madera County, which were consolidated. Contra Costa County was added as a DOE defendant on January 6, 2025. They answered on March 17, 2025. The cases were later transferred to this County.

Plaintiffs K.H. and C.M. included nearly identical allegations and their allegations are referred jointly as "FAC", unless otherwise specified as being from K.H.'s or C.M.'s first amended complaint. Plaintiffs allege that they were sexually abused as children while in the foster care system. K.H. alleges that she was in foster care, along with her sister C.M., starting in 1983 and that K.H. was sexually abused by the foster father from 1985 to 1993. (K.H. FAC ¶23.) Similarly, C.M. alleges that she was in foster care, along with her sister K.H., starting in 1983 and that C.M. was sexually abused by the foster father from 1983 to 1993. (C.M. FAC ¶23.) Plaintiffs allege that they reported the sexual abuse to the social worker assigned to them but they took no action, failed to conduct an investigation and the abuse continued. (FAC ¶25.)

Plaintiffs allege that children in foster care are the legal custody of the County Department of Social Services. (FAC ¶2.) Plaintiffs allege that the County owed a duty of care to Plaintiffs to ensure the safety of children in foster care, Welfare and Institutions Code section 16000.1(a). (FAC ¶10.) It is alleged that the County had "a non-delegable duty' to use reasonable care in the investigation, licensing, supervision, and/or monitoring of foster care facilities, homes, and/or families with whom it placed foster children, and to develop or implement programs, guidelines, procedures and/or training to prevent the abuse of foster children placed within foster care facilities, homes and/or families."

(FAC. ¶11.) A list of the duties owed is included in the complaint. (FAC ¶16.)

Plaintiffs also allege that the County owed Plaintiffs mandatory duties, including: “Welfare and institutions Code sections 328, 16501(f), and 16504; Health and Safety Code section 1522. et eq., Penal Code sections 11165.7, 11165.9 and 11166; Department of Social Services Child Welfare Services Manual Sections 31-320. 31-401, et seq. and 31-501.” (FAC ¶19.)

Plaintiffs allege that the County is vicariously liable for the acts of its employees. (Government Code section 815.2, 815.4 and 815.6.) Plaintiff also alleges that Government Code section 815.2 immunity does not bar the claims because the acts here were not policy decisions, but operational or ministerial decisions and no employee consciously balanced the risks and advantages such that they engaged in discretionary activity. (FAC ¶60.)

Plaintiffs sued the County for negligence. Since the County was added as a DOE defendant they are included in cause of action two for negligence. The County filed this motion for judgment on the pleadings, arguing that discretionary immunity bars Plaintiffs’ claims. The County argues that Government Code section 820.2 applies here, which makes a public employee immune for their discretionary acts. Further, where a public employee is immune to liability for a claim, such as under section 820.2, the public entity employer is also immune. (Gov. Code, § 815.2(b).)

There are two recent Court of Appeal opinions that have considered whether a County has discretionary immunity involving placement of children in foster care families where the child is sexually abused. *D.G. v. Orange County Social Services Agencies* (2025) 108 Cal.App.5th 465 held that the County did not meet its burden on discretionary immunity at the summary judgment stage. The following month, *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 held that discretionary immunity barred a negligence claim against the county on demurrer.

In *D.G.*, the court agreed with the “County that ‘decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees’ investigations.’ [Citation].” (*D.G.*, *supra*, 108 Cal.App.5th at 473.)

The court held that discretionary immunity requires a two-part analysis and after finding that a decision is discretionary, the public entity must then show that “the employee who made the decision at issue ‘actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in “discretionary activity” is irrelevant if, in a given case, the employee did not render a considered decision.’ (*Johnson v. State of California* (1968) 69 Cal.2d 782, 794–795, fn. 8.)” (*D.G.*, *supra*, 108 Cal.App.5th at 473-474.) The court noted that *Johnson* was followed in *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983. (*D.G.*, *supra*, 108 Cal.App.5th at 474.)

In *D.G.*, the court found that the County had not presented any evidence on the second part of this analysis and therefore, had not met its burden on summary judgment. (*Id.* at 474.) The court

reversed the trial court's granting of summary judgment on immunity grounds. (*Id.* at 475.)

In *K.C.*, the court also held that "decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. [Citations.]... [D]ecisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such [continued] surveillance and are '[no] less "discretionary" for purposes of the immunity of *Government Code section 820.2* than the original placement decision.' [Citation.]" (*K.C.*, *supra*, 109 Cal.App.5th at 619.)

In *K.C.*, the plaintiff argued that "County's demurrer should have been overruled because the operative complaint did not indicate 'an employee of the County made a considered ... decision' or 'actually exercised' 'discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.' " (*K.C.*, *supra*, 109 Cal.App.5th at 619.) The court, citing to *Caldwell*, *supra*, 10 Cal.4th at 982, explained that an immunity finding " 'requires a showing that "the specific conduct giving rise to the suit" involved an actual exercise of discretion, i.e., a "[conscious] balancing [of] risks and advantages" '[citation.] 'a strictly careful, thorough, formal, or correct evaluation' is not mandatory [citation]." (*K.C.*, *supra*, 109 Cal.App.5th at 619.) The court reviewed the allegations in *K.C.*'s complaint and held that "under a 'fair reading' of the complaint (*Caldwell*, *supra*, at p. 984), *K.C.* essentially alleged County's social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. '[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.' (*Caldwell*, *supra*, at p. 984, fn. & italics omitted.)". (*K.C.*, *supra*, 109 Cal.App.5th at 619-620.)

In *K.C.*, it was alleged that the child made complaints regarding the abuse to her social worker, but no corrective action was taken. (*K.C.* At 614-615.) In *D.G.*, the child told his social worker that "bad people are hurting" him and tried to explain what that meant and there was evidence that the child had a known bedwetting problem. (*D.G.* at 468-469.) In *D.G.*, there was also evidence that another child had made reports regarding the same foster parent that he felt weird taking showers with the foster parent because it was yucky. (*D.G.* at 469.) There was no follow up on the child complaints and ultimately the foster parent was allowed to adopt *D.G.* (*Ibid.*)

On June 25, 2025, the California Supreme Court granted review of *K.C.* on the following issue: "Was plaintiff's complaint alleging that a social worker failed to investigate or act in response to claims of sexual abuse subject to demurrer on the ground that discretionary act immunity under Government Code section 820.2 precluded liability?" The Supreme Court also stated that "[p]ending review, the opinion of the Court of Appeal... may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456, 20 Cal. Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict." (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361, Supreme Court case no. S290435.) The case has been fully briefed, but the Supreme Court has not scheduled oral argument. Since an opinion is not immediately forthcoming by the Supreme Court, the Court shall decide this issue.

K.C., distinguished *D.G.*, by explaining that *D.G.* was decided on summary judgment, not

demurrer. (*K.C.*, *supra*, 109 Cal.App.5th at 620, fn. 9.) But allegations in both *K.C.* and *D.G.* were very similar and *K.C.* did not explain what allegation was included in *D.G.* that explains the differing results between the two cases. It appears to the Court, that these two cases disagree on how to apply the second step in the discretionary immunity analysis in cases involving abuse of foster care children. Thus, there are conflicting court of appeal opinions, and the Court may decide to follow either *K.C.* or *D.G.*'s approach to the discretionary immunity analysis. (*Auto Equity Sales*, *supra*, 57 Cal.2d at 456.)

Plaintiffs argue that *K.C.* was wrongly decided. Plaintiffs point to *Johnson v. State of California* (1969) 69 Cal.2d 782 where the Supreme Court held that a County's initial decision to place a child in the foster home may have been discretionary, but that the implementation of that policy, including the determination whether to warn the foster parents of known dangers, was ministerial and not subject to immunity. (*Id.* at 795-796.)

Decades after *Johnson*, the California Supreme Court decided *Caldwell v. Montoya* (1995) 10 Cal.4th 972. There, the Supreme Court discussed *Johnson* in detail. Explaining that "*Johnson* precludes a finding of immunity solely on grounds that 'the [affected] employee's *general course of duties* is "discretionary" . . .' (*ibid.*, italics added), and requires a showing that 'the specific conduct giving rise to the suit'" involved an *actual* exercise of discretion, i.e., a '[conscious] balancing [of] risks and advantages' (*id.* at pp. 794, 795, fn. 8). But *Johnson* does not require a *strictly careful, thorough, formal, or correct* evaluation. Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy. [Citation.]" (*Caldwell*, *supra*, 10 Cal.4th at 983-984.) In *Caldwell* the Supreme Court went on to explain that "[a] fair reading of the instant complaint" shows that there are allegations that the public entity made an *actual, conscious, and considered* collective policy decision. (*Ibid.*) The Supreme Court also explained that "claims of *improper* evaluation cannot divest a discretionary policy decision of its immunity." (*Ibid.*)

Plaintiffs cite several other cases to support their position. However, none of those cases conflict with *K.C.* and *D.G.* The Court has reviewed these cases to determine whether *K.C.* or *D.G.* is a more persuasive opinion.

In *Barner v. Leeds* (2000) 24 Cal.4th 676 the Supreme Court held that a public defender's legal malpractice when defending an innocent client involved the lawyer's operational decisions, not discretionary policy decisions. (*Id.* at 689.) The Court's ruling involved a discussion of publicly employed health professionals and deputy public defenders in exercising their professional judgment when discharging duties owed to their clients. (*Id.* at 687-689.) The Court also discussed the policy considerations and found that a public defender should be subjected to the same civil liability as private attorneys performing identical professional services in the same type of proceedings. (*Id.* at 692.) *Barner* does not apply here, where the issue is the conduct of county social workers and their handling of foster care children. The decision to place children in foster care, conduct investigations and remove children when necessary, is handled within the public sphere.

In *Elton v. County of Orange* (1970) 3 Cal.App.3d 1053 the court concluded that decisions about the maintenance, care, or placement of a child "do not achieve the level of basic policy

decisions” and are thus, not immune from liability under section 820.2. (*Id.* at 1058.) Courts have since distinguished or limited *Elton*’s holding. In *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887, the court explained that *Elton* can be distinguished by considering that “[t]he maintenance of a child in a foster home involves an obligation of continued supervision by the County. The child remains a ward of the County. Much of what the County is obligated to do in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” (*Id.* at 898.) Further, “*Elton* was decided in 1970, many years before the adoption of current statutes (such as Welf. & Inst. Code, § 16501.1) requiring that social workers engage in a discretionary analysis of the needs and interests of a dependent child.” (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) Thus, while *Elton* appears to make a broad statement regarding the nondiscretionary actions, the Court finds *Elton* does not apply here because the laws requiring a discretionary analysis of social workers have changed, and here, the allegations are not based upon the social workers failing to perform uncomplicated surveillance.

Here, the Court finds that *K.C.*’s analysis of the discretionary immunity test under *Caldwell* is more persuasive than *D.G.*’s analysis. Therefore, the Court finds that where *K.C.* and *D.G.* conflict, the Court will follow *K.C.* Here, the allegations are nearly identical to the ones in *K.C.* Plaintiffs allege that they informed their social workers that they were experiencing abuse by their foster father, but nothing was done. A fair reading of these allegations includes that the County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. Under *K.C.* these allegations make the claims against the County immune under discretionary immunity and therefore, the Court finds that the negligence claim against the County is **barred**.

The County also argues that the complaint is uncertain. However, uncertainty is not a ground available in a motion for judgment on the pleadings. Code of Civil Procedure section 438(c)(2) states that “The motion provided for in this section may be made as to either of the following: (A) The entire complaint or cross-complaint or as to any of the causes of action stated therein. (B) The entire answer or one or more of the affirmative defenses set forth in the answer.” (Code of Civil Procedure section 438(c)(2).) The “uncertainty” of a pleading may be raised in a special demurrer, but “furnishes no ground for support of a judgment on the pleadings.” (*Bates v. Escondido Union High School Dist.* (1933) 133 Cal.App.725, 731.) A party’s failure to raise the defect of uncertainty by demurrer constitutes a waiver of that objection. (*Stockton Newspapers, Inc. v. Redevelopment Agency* (1985) 171 Cal.App.3d 95, 103.)

13. 9:00 AM CASE NUMBER: MSC22-00100
CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.
HEARING ON SUMMARY MOTION
FILED BY: GHC OF CONTRA COSTA, LLC
TENTATIVE RULING:

The Motion of Defendants GHC of Contra Costa, LLC, Life Generations Healthcare, and Ann Nguyen-Traxler, M.D. for Summary Judgment or, in the Alternative, Summary Adjudication of Issues is **denied**

for the reasons that follow.

I. Background

This action was filed on January 14, 2022. Plaintiff Marlene Rideau, individually and as successor in interest to the estate of her son Dwayne Rideau ("Decedent" or "Mr. Rideau"), brings this action against defendants GHC of Contra Costa, LLC, Life Generations Healthcare, and Dr. Ann Nguyen-Traxler, M.D., arising from care and treatment provided to Mr. Rideau at Bayberry Skilled Nursing and Healthcare Center ("Bayberry"). Plaintiff contends that her son, a wheelchair-bound resident of Bayberry, died of liver cancer that would have been detected and treated in time to save his life had defendants maintained the cancer surveillance protocol established by his treating hepatologist. GHC of Contra Costa, LLC and Life Generations Healthcare are the owners and operators of Bayberry (collectively, the "Facility Defendants"). Dr. Nguyen-Traxler served as Mr. Rideau's attending physician and as Medical Director of Bayberry during the period at issue. Defendants now move for summary judgment, or in the alternative summary adjudication of issues, contending that no act or omission by Dr. Nguyen-Traxler or Bayberry's nursing staff fell below the applicable standard of care, that Decedent's death resulted from the natural progression of his underlying liver disease rather than any failure to diagnose or treat cancer, and that no conduct by any defendant rose to the level of recklessness required to sustain the elder abuse cause of action.

The operative Second Amended Complaint alleges four causes of action. At all relevant times Mr. Rideau was a "dependent adult" within the meaning of the Elder Abuse and Dependent Adult Civil Protection Act ("EADCPA"), Welfare and Institutions Code section 15600, et seq. The first cause of action for wrongful death due to medical negligence and the fourth cause of action for neglect, brought as a survival claim for professional medical negligence on behalf of Decedent, are asserted against all defendants. The second cause of action for reckless or willful neglect of a dependent adult, or neglect with fraud, under the EADCPA is asserted against all defendants. The third cause of action for violation of the Resident Bill of Rights is asserted against the Facility Defendants only.

Decedent Dwayne Rideau was diagnosed at age 46 with end-stage liver disease secondary to hepatitis C and alcohol use, cirrhosis of the liver, hepatic encephalopathy, an upper gastrointestinal bleed due to esophageal variceal bleeding, portal hypertension, and thrombocytopenia during an admission to California Pacific Medical Center ("CPMC"). During that admission Decedent was evaluated for liver transplantation but was denied. (Defs.' Separate Statement of Undisputed Material Facts ["UMF"] Nos. 5-6.)

On January 14, 2014, Decedent was admitted to Bayberry following a medical event resulting in left-sided paralysis. The admitting physician, Hamta Jafari, M.D., documented Decedent's chronic conditions including hepatitis C, alcoholic cirrhosis, thrombocytopenia secondary to cirrhosis, left-sided hemiparesis, and hypertension. Decedent weighed approximately 200 pounds at admission. Dr. Jafari served as Decedent's attending physician at Bayberry until January 13, 2016, when Dr. Ann Nguyen-Traxler assumed that role. (UMF No. 10.)

On October 30, 2014, Decedent established specialty care with Chanda Ho, M.D., a hepatologist and gastroenterologist at the Sutter Health liver disease clinic, for evaluation and management of his liver disease. Decedent's mother Marlene Rideau and his sister were present. Dr. Ho reported that Decedent's cirrhosis was complicated by hepatic encephalopathy, portal hypertension, and variceal

bleeding post-banding, and that his extremely limited mobility from paralysis ruled out liver transplantation. At this visit Dr. Ho initiated a liver cancer surveillance protocol given Decedent's cirrhosis, consisting of abdominal ultrasounds and alpha fetoprotein ("AFP") level testing every six months. Dr. Ho completed order forms for these tests as well as routine lab work and provided the forms to Decedent to take back to Bayberry. Bayberry executed Dr. Ho's orders, obtained the abdominal ultrasound and lab work, and forwarded the results to Dr. Ho, as documented in Dr. Ho's progress note for the follow-up visit on December 19, 2014. (UMF No. 11.)

On June 10, 2015, Decedent returned to Dr. Ho's liver clinic for a six-month follow-up visit. Dr. Ho's progress note, which was mistakenly addressed and faxed to Dr. Jafari, documented her plan for lab work every three months and AFP testing at least every six months for HCC screening, and requested the results be faxed to her. Dr. Ho asked that the next abdominal ultrasound be performed at CPMC and requested Decedent return in six months. The parties dispute whether Dr. Nguyen-Traxler received a copy of this note. Defendants contend the note was faxed to Dr. Jafari's outdated fax number and was not received by Dr. Nguyen-Traxler. Plaintiffs contend a copy of the note is present in Decedent's Bayberry medical chart. (UMF No. 13 and Plf.'s Response.)

On or about January 13, 2016, Dr. Nguyen-Traxler assumed care of Decedent as his attending primary care physician at Bayberry. In her first progress note of that date, Dr. Nguyen-Traxler documented that Decedent was being followed by a gastroenterologist for his hepatitis C and alcoholic cirrhosis, that he was receiving liver cancer surveillance including AFP testing, and that there were no signs of hepatocellular carcinoma. (UMF No. 16.)

On February 3, 2016, Decedent had his fourth visit with Dr. Ho at the liver disease clinic. Dr. Ho's progress note (again addressed to Dr. Jafari) documented that the July 2015 abdominal ultrasound showed cirrhosis with evidence of portal hypertension, reversible flow in the main portal vein, splenomegaly, and a partially occluded thrombus in the main portal vein, with no focal liver lesions identified. Dr. Ho reiterated her plan for AFP testing and abdominal ultrasounds every six months for liver cancer screening and provided Decedent with order forms. The parties dispute whether Dr. Nguyen-Traxler had any role in ordering liver cancer screening tests. Defendants contend Dr. Ho's orders were carried out by Bayberry staff under the specialist's direction. Plaintiffs contend that under Dr. Ho's treatment recommendations the primary care physician was responsible for ordering the AFP and abdominal ultrasound tests on the recommended schedule and communicating results back to Dr. Ho and that only Dr. Nguyen-Traxler, whose medical license was associated with Bayberry, could place those orders. (UMF No. 17 and Plf.'s Response.)

On May 20, 2016, Decedent underwent an abdominal ultrasound at CPMC for HCC screening. No hepatic mass was identified. A 10 mm cyst was present in Segment 6 and a 1.6 cm simple cyst in Segment 3. The portal vein measured 10 mm with a partially occluded thrombus unchanged from 2015. (UMF No. 18.)

On July 14, 2016, Decedent was admitted to CPMC for an EKG, lab work, and tissue biopsy on Dr. Ho's orders, following which Dr. Ho referred Decedent to CPMC for treatment of large gastric varices. (UMF No. 19.) On September 23, 2016, Decedent was admitted to CPMC for an endoscopic ultrasound revealing multiple varices, which were treated with glue and coiling. Endosonographic imaging of the left lobe of the liver showed cirrhosis but no mass. (UMF No. 20.)

On November 4, 2016, Decedent had a clinic visit with Dr. Ho. Dr. Ho reiterated her plan for AFP testing every six months and noted Decedent was due for an abdominal ultrasound in November 2016. The parties dispute who ordered the AFP testing performed around this time. Defendants contend the orders were Dr. Ho's. Plaintiffs contend the AFP testing reports reflect that Dr. Nguyen-Traxler (not Dr. Ho) ordered the tests, consistent with Dr. Nguyen-Traxler's testimony that only she could place orders at Bayberry. (UMF No. 21 and Plf.'s Response.) Following this visit, Bayberry staff documented that Marlene Rideau said she would arrange her son's ultrasound appointment and next appointment with Dr. Ho, and would provide the ultrasound results to Bayberry to fax to Dr. Ho. (UMF No. 22.)

AFP lab work was obtained on November 9, 2016, with a normal result of 5.2. An abdominal ultrasound was performed at Bayberry on November 11, 2016, and results were faxed to the liver clinic on November 15, 2016. Dr. Nguyen-Traxler's November 10, 2016 progress note states "labs drawn by GI physician, reviewed." Plaintiffs dispute that Dr. Ho ordered those labs, noting the AFP report identifies Dr. Nguyen-Traxler as the ordering physician. (UMF No. 23 and Plf.'s Response.)

Subsequent visits with Dr. Ho occurred on May 17, 2017, and September 20, 2017. At each visit Dr. Ho provided order forms for lab work and abdominal ultrasounds and requested follow-up in five to six months. The parties continue to dispute who actually placed the orders for AFP testing and abdominal ultrasounds at Bayberry, with Plaintiffs consistently contending that Dr. Nguyen-Traxler was the ordering physician because only she could place orders at Bayberry. (UMF Nos. 25-29 and Plf.'s Responses.) This dispute is material to the question of whether Dr. Nguyen-Traxler understood herself to have an independent obligation to maintain the HCC surveillance schedule.

On April 12, 2018, Decedent returned to the liver clinic and was seen by Dr. Ho's nurse practitioner, Tammy K. Lee, N.P. NP Lee's management plan included AFP level testing, an abdominal ultrasound, an endoscopic ultrasound at CPMC, and lab work for MELD monitoring, all to be completed before Decedent's return to the clinic in six months. NP Lee prepared a one-time lab order form for AFP and a one-time imaging requisition for an abdominal ultrasound, with the plan that Bayberry would execute the orders and fax results back to the liver clinic. NP Lee's progress note was faxed to Dr. Jafari at the outdated fax number. The parties dispute whether Bayberry could execute these orders without Dr. Nguyen-Traxler's involvement. Plaintiffs contend and Dr. Nguyen-Traxler testified that she would place the orders for the screening tests, the results would come back to her, and Bayberry staff would fax the results to Dr. Ho's office. (UMF Nos. 33-37 and Plf.'s Responses.)

AFP lab work was obtained on April 20, 2018 and June 19, 2018. The June 2018 results were faxed to the liver clinic. The June 2018 AFP was the last AFP test performed on Decedent prior to November 2020. On September 8, 2018, Decedent underwent an abdominal ultrasound at Bayberry. The results were faxed to the liver clinic on November 14, 2018. The September 2018 ultrasound was the last abdominal ultrasound performed on Decedent as part of his HCC surveillance protocol prior to his emergency department visit in September 2019. (UMF Nos. 39-40.)

Decedent's return appointment with Dr. Ho was scheduled for November 21, 2018. On November 14, 2018, the liver clinic confirmed the appointment with Bayberry, and Bayberry confirmed that transportation had been arranged. Bayberry faxed Decedent's most recent lab results and ultrasound report to the liver clinic. On November 14, 2018, Bayberry staff advised Marlene Rideau of the

upcoming appointment. However, on November 15, 2018, Ms. Rideau called Bayberry and asked to cancel the appointment. The appointment was cancelled. No follow-up appointment with Dr. Ho was scheduled. As a result, Decedent was “lost” to follow-up with the liver clinic. He never returned to the clinic, and Dr. Ho made no further orders for liver disease management or HCC screening. (UMF Nos. 41, 43-45.)

The parties dispute whether Bayberry had an independent obligation to follow up and reschedule the cancelled November 2018 appointment. Defendants contend it was reasonable to rely on Marlene Rideau’s statement that she would reschedule and that no one informed Dr. Nguyen-Traxler of the lapse in specialist follow-up. Plaintiffs contend that Bayberry (not Decedent’s 81-year-old mother, Marlene) bore responsibility to coordinate specialist appointments and arrange paratransit for a wheelchair-bound dependent adult resident, that it was foreseeable an elderly family member might fail to reschedule, and that Bayberry’s failure to notice and act when nearly two years passed without a specialist appointment fell below the standard of care.

Following the November 2018 cancellation, no AFP testing and no abdominal ultrasound for HCC surveillance were performed on Decedent for approximately two years. However, during this period, Dr. Nguyen-Traxler continued to make monthly progress notes stating, “AFP normal, no evidence of HCC or hepatoma.” Plaintiffs contend that the notations were false and Dr. Nguyen-Traxler had no factual basis for those representations.

On September 17, 2019, Dr. Nguyen-Traxler sent Decedent to the John Muir Medical Center Emergency Department for evaluation of flank pain. On September 18, 2019, an abdominal ultrasound was performed in the ED. The radiologist reported a potential lack of flow in the portal vein and identified a finding in the right lobe of the liver, recommending an abdominal CT to investigate portal vein flow. The CT scan obtained on September 18, 2019 was read as negative with no recommended follow-up. Decedent was diagnosed with a urinary tract infection and discharged on antibiotics. (UMF No. 47.)

The parties dispute the significance of the September 2019 imaging, and that dispute is central to the causation issues in this case. The radiologist who performed the September 2019 ultrasound reported the finding in the right lobe as cysts. Plaintiff’s medical expert Dr. Arora opines the finding was a 2.0 cm lesion inconsistent with a simple cyst and was highly suspicious for early stage HCC. Defense expert Dr. Gaensler opines the finding was a benign cyst meeting simple cyst criteria and required no follow-up. (UMF No. 47 and Plf.’s Response.)

The parties further dispute what the September 18, 2019 CT scan shows. When defense experts Dr. Hendifar and Dr. Gaensler reviewed the September 2019 CT retrospectively during litigation, Dr. Gaensler identified a 5.91 x 4.10 cm tumor in the hilum of the liver extending into the left lobe with portal vein tumor thrombus and bile duct dilatation, and opined the cancer was already untreatable as of September 2019. Plaintiff’s expert Dr. Arora disputes this finding, opining that the area identified by Dr. Gaensler measured substantially smaller on subsequent 2020 and 2021 imaging studies, shrinking from the claimed 5.91 x 4.10 cm to approximately 3.6 x 3.2 cm on the November 2020 CT and 3.4 x 3.2 cm on the January 2021 CT, which Dr. Arora states is inconsistent with an untreated malignant tumor. (UMF No. 48 and Plf.’s Response.)

In April 2020, Decedent weighed 272 pounds against an ideal body weight of 178 pounds and was

placed on a weight loss diet. When Dr. Nguyen-Traxler saw Decedent for her monthly visit on August 20, 2020, she noted a significant weight loss of 42 pounds in the previous six months. Decedent reported he did not like the food at Bayberry, often skipped breakfast, and denied abdominal discomfort. Dr. Nguyen-Traxler attributed the weight loss to desired weight reduction, dietary changes, reduced outside food due to pandemic restrictions, and depression from isolation. (UMF Nos. 49-52.)

The parties dispute whether Bayberry's nursing staff responded appropriately to Decedent's weight loss during the June through September 2020 period. Defendants contend Bayberry records show Decedent was alert and responsive with no complaints of pain or discomfort, and that his food intake varied from day to day. Plaintiffs contend that a Bayberry nurse documented that Decedent had been eating poorly since June 2020, that Bayberry continued to characterize his weight loss as desirable through October 2020, and that Bayberry failed to inform Decedent's family of his significant weight loss during the June through September 2020 period, preventing the family from advocating on his behalf. (UMF No. 53 and Plf.'s Response.)

On or about October 23, 2020, Dr. Nguyen-Traxler was told by someone at Bayberry, possibly the dietician, that Decedent's weight loss had occurred over three months rather than six, which caused her to suspect malignancy. Dr. Nguyen-Traxler ordered weekly weights, blood work, and an abdominal ultrasound. Decedent's mother, Marlene Rideau, was informed and agreed to the testing. (UMF No. 54.)

An abdominal ultrasound performed on October 28, 2020 was interpreted as suspicious for an ill-defined 3 cm mass in the right liver lobe. Dr. Nguyen-Traxler ordered an abdominal and pelvic CT with contrast. (UMF No. 55.) The CT was performed by NorCal Imaging on November 6, 2020. In a report prepared on November 9, 2020, radiologist Tereasa Simonson, M.D. found no evidence of an enhancing liver mass. Relying on Dr. Simonson's negative read, Dr. Nguyen-Traxler spent the following eight weeks seeking alternative explanations for Decedent's continued weight loss and ordered an urgent referral to a gastroenterologist. (UMF No. 58.)

Over the following eight weeks Decedent was evaluated at the County clinic by two primary care providers before being seen by gastroenterologist Dr. Zheng on December 3, 2020. AFP tumor marker testing ordered on November 30, 2020 resulted on December 1, 2020 with an abnormally elevated level consistent with liver cancer, the first abnormal AFP in Decedent's testing history, all prior results having been normal. (UMF Nos. 61-62.)

In hindsight, the November 6, 2020 CT study showed untreatable metastatic hepatocellular cancer. On January 4, 2021, when Dr. Aaron Hayashi, a radiologist at Contra Costa Regional Medical Center, retrospectively reviewed the November 6, 2020 CT, he identified a 3.2 x 3.2 cm malignant mass in the posterior right lobe, a 10.3 x 11.3 cm malignant mass in the right lobe, a malignant tumor in the main portal vein, and pulmonary nodules representing metastatic liver cancer. These findings had not been identified by Dr. Simonson in her original November 9, 2020 interpretation. (UMF No. 57.)

On December 16, 2020, Dr. Ho conducted a virtual visit with Decedent and Marlene Rideau and recommended resuming AFP labs and abdominal ultrasounds every six months going forward. A follow-up appointment with Dr. Ho was scheduled for June 16, 2021. (UMF Nos. 64-65.)

The parties dispute Decedent's condition during the final months of his life. Defendants contend

Bayberry records from June 1, 2020 through January 4, 2021 reflect normal vital signs and no pain complaints related to liver disease. Plaintiffs contend the records from the last month of Decedent's life reflect pain from advanced liver cancer. (UMF No. 66 and Plf.'s Response.)

On January 4, 2021, Decedent was difficult to arouse. Dr. Nguyen-Traxler and Marlene Rideau were contacted and agreed to transfer Decedent to the emergency department at Contra Costa Regional Medical Center. Bayberry provided the treating physicians with recent history including the November 2020 CT study, which had been read as negative for liver masses. (UMF No. 67.)

At Contra Costa Regional Medical Center, Dr. Hayashi reviewed both the new January 4, 2021 non-contrast CT and the prior November 6, 2020 contrast CT. In his retrospective review of the November 2020 study Dr. Hayashi identified liver masses suspicious for HCC and pulmonary nodules consistent with metastasis. Decedent was admitted for treatment of sepsis. (UMF No. 69.)

The clinical assessment was incurable metastatic liver cancer consistent with HCC and hepatic biliary obstruction. As Decedent had advanced incurable disease and was a poor candidate for treatment, home hospice was recommended. The family agreed, and Decedent was discharged on January 7, 2021. Decedent died on January 14, 2021. (UMF No. 70.)

II. Summary Judgment Standard

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) As to each claim as framed by the complaint, a defendant moving for summary judgment or summary adjudication by doing one of the following: (1) presenting affirmative evidence negating an essential element of plaintiff's cause of action; (2) showing a complete defense; or (3) showing that plaintiff does not possess and cannot reasonably obtain needed evidence. (Code Civ. Proc. §437c(p)(2).)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Nevertheless, courts "liberally construe the evidence in support of the party opposing summary judgment and resolves doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

"A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc. § 437c, subd. (f)(2).)

III. Evidentiary Matters

A. Judicial Notice

On September 9, 2025, Defendants filed a request for judicial notice of documents filed in support of Defendant Nguyen-Traxler's motion for summary judgment or, in the alternative, summary adjudication filed on May 7, 2025, including the declarations of Ann Nguyen-Traxler, M.D., Andrew Hendifar, M.D., Erik H.L. Gaensler, M.D., and Sonja Rosen, M.D., together with the exhibits attached

to those declarations.

On January 9, 2026, Plaintiffs filed a request for judicial notice of documents filed in opposition to Defendant Nguyen-Traxler's motion for summary judgment or, in the alternative, summary adjudication on September 25, 2025, including the declarations of Felicia C. Curran, Steven H. Fugaro, M.D., Gregory M. Graves, M.D., and Lokesh C. Arora, M.D., together with the exhibits attached to those declarations.

Both requests are granted, although a formal request for judicial notice of materials previously filed in this action is not required. It is sufficient to call the Court's attention to such papers. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9:53.1a.)

B. Plaintiff's Objections to Evidence

Plaintiff's objection to the Supplemental Declaration of Andrew Hendifar, M.D. is **sustained**. The supplemental Hendifar declaration attacks the qualifications of Dr. Fugaro, Dr. Graves, and Dr. Arora, arguing that none of them has the specialized expertise in liver disease management necessary to opine on the issues presented in this case. Paragraphs 8.1 through 8.5 of the declaration expand Defendants' causation argument by introducing new detail in support of the argument that Decedent was never definitively diagnosed with HCC so Plaintiffs cannot prove causation. New matter is not permitted with reply papers. (Code Civ. Proc. § 437c(b)(4); *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 241.)

Plaintiff's Objection Nos. 1-3 to the Declaration of Sonja Rosen, M.D., are **sustained**. Dr. Rosen's opinion that Dr. Nguyen-Traxler met the standard of care applicable to a medical director of a skilled nursing facility is conclusory and lacking in foundation. (*McAlpine v. Norman* (2020) 51 Cal.App.5th 933, 939-941.)

C. Defendants' Objections to Evidence

On October 6, 2025, Defendant Nguyen-Traxler, M.D. filed "Evidentiary Objections and Motion to Strike the Declarations of Steven H. Fugaro, M.D., Gregory M. Graves, M.D., and Lokesh K. Arora, M.D." On January 16, 2026, the Facility Defendants filed a notice of joinder in those objections and separately moved to strike the Supplemental Declaration of Dr. Fugaro filed on January 9, 2026.

Declaration of Steven H. Fugaro, M.D. Overruled. Dr. Fugaro is qualified to offer standard-of-care opinions, and the issues raised by defendants go to weight rather than admissibility. Any factual conflicts are for cross-examination and do not provide a basis for exclusion.

Declaration of Gregory M. Graves, M.D. Overruled. Dr. Graves' training and experience adequately support his opinions, and any gaps concerning comorbidities affect weight, not admissibility.

Declaration of Lokesh C. Arora, M.D. Overruled. Dr. Arora's experience in liver-cancer diagnosis and treatment provides sufficient foundation for his opinions. Concerns regarding comorbidities or diagnostic assumptions go to weight, not admissibility.

Supplemental Declaration of Steven H. Fugaro, M.D. Overruled. The original and supplemental declarations together provide adequate foundation for the opinions expressed.

IV. Analysis

A. First and Fourth Causes of Action for Negligence (Issue Nos. One and Four)

Defendants seek summary adjudication of the First and Fourth Causes of Action for Negligence and Wrongful Death on grounds that Plaintiffs cannot prove a breach of the standard of care or causation. Because both causes of action turn on the same issues, the Court addresses them together.

1. Legal Standard for Medical Malpractice Actions

The elements to a claim for medical negligence are (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise, (2) a breach of the duty, (3) a proximate causal connection between the negligent conduct and the injury, and (4) resulting loss or damage." (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.)

Expert testimony is generally required in every professional negligence case to establish the applicable standard of care, whether the defendant met or breached that standard, and whether the defendant's negligence caused the plaintiff's damages. (*Sanchez v Kern Emergency Med. Transp. Corp.* (2017) 8 Cal.App.5th 146, 153.)

"Whenever the plaintiff claims negligence in the medical context, the plaintiff must present evidence from an expert that the defendant breached his or her duty to the plaintiff and that the breach caused the injury to the plaintiff." (*Powell v. Kleinman* (2007) 151 Cal.App.4th 112, 123.) "California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-985.)

A judge should strictly construe the declarations in support of the motion and should liberally construe the opposing declarations. (*Jennifer C. v Los Angeles Unified Sch. Dist.* (2008) 168 Cal.App.4th 1320, 1332 [the requirement of detailed, reasoned explanation for expert opinions applies to expert declarations submitted in support of summary judgment, not to those submitted in opposition].)

2. Defendants' Evidence

Defendants rely primarily on the declarations of Sonja Rosen, M.D., an internist and geriatrician who opines on the standard of care applicable to Dr. Nguyen-Traxler and Bayberry's nursing staff, Andrew Hendifar, M.D., an oncologist who opines on standard of care and causation, and Erik H.L. Gaensler, M.D., a diagnostic and interventional radiologist who opines on the imaging findings. Together, these declarants opine that Dr. Nguyen-Traxler complied with the standard of care because she was not required to independently manage HCC surveillance, that she reasonably relied on Decedent's outside specialist for disease management, and that Decedent's death resulted from end-stage liver disease rather than any delay in diagnosis or treatment of cancer.

Dr. Rosen opines that Dr. Nguyen-Traxler met the standard of care in her roles as both attending physician and medical director. (Rosen Decl., ¶ 7.) With respect to HCC surveillance, Dr. Rosen opines that the standard of care did not require Dr. Nguyen-Traxler to independently order AFP testing or abdominal ultrasounds because Decedent's liver disease, including cancer surveillance, was being managed by Dr. Ho and her liver clinic. (*Id.*, ¶¶ 5(c), 5(e), 9.) Dr. Rosen further opines that it was

reasonable for Dr. Nguyen-Traxler to assume Dr. Ho was continuing to manage Decedent's liver care after the November 2018 appointment cancellation, as no one informed her of the lapse. (*Id.*, ¶¶ 5(i), 9.) Dr. Rosen additionally opines that standing orders for periodic screening tests are not permitted in skilled nursing facilities, and Dr. Ho's one-time orders for AFP testing and abdominal ultrasound issued at the April 2018 visit did not create an ongoing independent obligation for Dr. Nguyen-Traxler to continue ordering the testing. (*Id.*, ¶ 9.)

With respect to the weight loss, Dr. Rosen opines that it was reasonable for Dr. Nguyen-Traxler to attribute the August 2020 weight loss to Decedent's obesity, dietary changes, and pandemic-related isolation, particularly given that Decedent was asymptomatic and she reasonably believed Dr. Ho was continuing to monitor him for liver cancer. (*Id.*, ¶¶ 5(j), 10.) Dr. Rosen opines that Dr. Nguyen-Traxler's response upon learning of accelerated weight loss in October 2020 was prompt and appropriate, and that the subsequent two-month delay in diagnosis resulted from the radiologist's misinterpretation of the November 2020 CT study rather than any failure by Dr. Nguyen-Traxler. (*Id.*, ¶¶ 5(k), 5(l), 10.)

With respect to the medical director role, Dr. Rosen states that the standard of care applicable to a medical director did not require Dr. Nguyen-Traxler to identify the cause of Decedent's weight loss or to oversee individual attending physician treatment decisions. (*Id.*, ¶¶ 11-12.)

Dr. Gaensler opines that “while it is possible that Mr. Rideau's cancer was cholangiocarcinoma, it is more likely than not that Mr. Rideau had HCC given the history of cirrhosis and the fact that cholangiocarcinoma is rare.” (Gaensler Decl., ¶ 6.) Dr. Gaensler further states that his retrospective review of the September 2019 CT study reveals a 5.91 x 4.10 cm malignant tumor in the hilum of the liver that “that is likely hepatocellular carcinoma.” (*Id.*, ¶¶ 8.5, 8.5(c), 8.5(f) 8.5(g).) Dr. Gaensler opines that as of September 2019 this tumor was not amenable to any treatment given its size, location, and the severity of the underlying cirrhosis and varices. (*Id.*, ¶ 8.6.) Dr. Gaensler also opines that the 2.0 cm hypoechoic lesion identified on the September 2019 abdominal ultrasound was a benign cyst based on its anechoic appearance, round shape, well-defined margins, did not require further investigation or follow-up. (*Id.*, ¶ 8.3.)

Dr. Hendifar opines that Dr. Nguyen-Traxler met the standard of care for an internal medicine physician throughout her treatment of Mr. Rideau from January 2016 through January 2021. (Hendifar Decl., ¶ 10.0.) He states that the management of Mr. Rideau's liver disease and HCC surveillance was solely the responsibility of clinicians at the Sutter Health liver clinic, who never delegated that responsibility to Dr. Nguyen-Traxler. Dr. Hendifar states that Dr. Nguyen-Traxler was unaware of Dr. Ho's management and treatment plan because Dr. Ho's progress notes were faxed Dr. Jafari rather than Dr. Nguyen-Traxler (*Id.*, ¶¶ 10.1, 10.2).

Dr. Hendifar opines that the standard of care did not require Dr. Nguyen-Traxler to recognize that Mr. Rideau had stopped attending the liver clinic, or to independently order HCC screening, because Dr. Ho and Nurse Practitioner Lee never provided standing orders for HCC surveillance, NP Lee testified that her April 2018 orders for AFP testing and abdominal ultrasound were one-time orders, and standing orders for special labs and imaging are generally not allowed at skilled nursing facilities (*Id.*, ¶¶ 10.3, 10.4.) Dr. Hendifar states that Dr. Nguyen-Traxler responded reasonably and within the standard of care to Mr. Rideau's weight loss beginning in late August 2020, and reasonably attributed

the initial weight loss to diet changes and pandemic-related isolation until October 2020, when she suspected malignancy and began a diagnostic workup (*Id.*, ¶ 10.5.) Dr. Hendifar states Dr. Nguyen-Traxler 's decision making from October 2020 through January 2021, including her reliance on a negative CT interpretation, met the standard of care. (*Id.*, ¶ 10.6.)

Dr. Hendifar states that it was reasonable for physicians to presume that Mr. Rideau's cancer was HCC given its strong association with chronic liver disease and cirrhosis. Nevertheless, he opines that plaintiff cannot prove HCC definitively, because no biopsy was performed, no autopsy was conducted, and the imaging is not definitive. (*Id.*, ¶ 8.)

Dr. Hendifar further opines that no act or omission by Dr. Nguyen-Traxler or Bayberry was a substantial factor in causing Mr. Rideau's death. (*Id.*, ¶ 12.0.) Based on his review of the imaging studies and his collaboration with Dr. Gaensler, Dr. Hendifar states that as of September 2019 Decedent already had a 5+ cm tumor in the liver hilum involving the portal vein and biliary tree that was not amenable to any treatment given its size, location, and his severe underlying comorbidities. (*Id.*, ¶¶ 12.1, 12.5.) Even had the cancer been diagnosed earlier, there was no curative treatment available that would have given Decedent a better than 50% chance of survival, and an earlier diagnosis would not have improved his quality of life or altered the timing of his death. (*Id.*, ¶¶ 12.4, 12.5.) Dr. Hendifar states that it is speculative whether earlier HCC screening would even have resulted in an earlier diagnosis, given that both CT studies performed in 2019 and 2020 were interpreted as negative for liver lesions, and AFP testing is an unreliable screening tool with limited sensitivity. (*Id.*, ¶ 12.7.)

Defendants' expert declarations make a prima facie showing that the standard of care did not require Dr. Nguyen-Traxler to independently manage HCC surveillance, that she reasonably relied on Decedent's outside specialist for disease management, and that Decedent's death resulted from advance and incurable liver disease and not a delay in diagnosis or treatment. The Court therefore finds that Defendants met their initial burden under Code of Civil Procedure section 437c(p)(2), and the burden shifts to Plaintiffs to produce evidence raising a triable issue of material fact.

3. Plaintiff's Evidence

Plaintiff's opposition is supported by declarations of Steven H. Fugaro, M.D., an internist who opines on the standard of care applicable to Dr. Nguyen-Traxler as a primary care physician managing a patient with an outside specialist, Gregory M. Graves, M.D., an oncological surgeon who opines on causation, available treatment options, and prognosis, and Lokesh C. Arora, M.D., a diagnostic and interventional radiologist who opines on the imaging findings and treatability. Together, these declarants opine that Dr. Nguyen-Traxler breached the standard of care by failing to maintain the HCC surveillance protocol established by Dr. Ho, that Bayberry's nursing staff independently breached the standard of care by failing to reschedule the cancelled November 2018 specialist appointment and by failing to inform Decedent's family of his significant weight loss, and that had surveillance been maintained, Decedent's liver cancer would have been detected when it was still amenable to treatment with a better than 50 percent chance of survival.

Dr. Fugaro opines that Dr. Nguyen-Traxler fell below the standard of care in her care and treatment of Decedent from June 2018 through January 2021 in multiple respects. (Fugaro Decl., ¶ 32.)

Dr. Fugaro opines that when Dr. Nguyen-Traxler assumed care of Mr. Rideau in January 2016, she was

aware a GI specialist was following him but made no effort to understand her role in that relationship. She never inquired who the specialist was, what conditions were being managed, what testing was being ordered, or how often. She never requested or reviewed consultation notes from Dr. Ho, never spoke to her, and testified that she did not need to know what liver cancer screening her patient required because she was relying on Dr. Ho, despite having never communicated with her. (*Id.*, ¶ 12.) Dr. Fugaro indicates this failure was significant because Dr. Nguyen-Traxler was the only physician who could place orders for AFP testing and abdominal ultrasounds at Bayberry, and the results of those tests came back to her rather than to Dr. Ho. (*Id.*, ¶¶ 12, 13.)

Dr. Fugaro opines that Dr. Nguyen-Traxler had a responsibility to be aware of health care screening requirements and tests for her patients with extended stays, including mammograms, colon cancer screening with colonoscopies, and in patients with significant hepatitis C induced cirrhosis, awareness of the very high risk of hepatocellular carcinoma and the guidelines for screening such patients. Even if she was unaware of those guidelines in patients with severe cirrhosis, Dr. Ho's notes outlined the need for screening, and Dr. Nguyen-Traxler had a responsibility to read those notes and thus to be aware of the need to screen for HCC. Even if Mr. Rideau had stopped being evaluated by Dr. Ho for whatever reason, Dr. Nguyen-Traxler had a duty to continue the previously outlined regimen for HCC screening that she had ordered in the past.

Dr. Fugaro therefore disagrees with Dr. Hendifar that Bayberry and Dr. Nguyen-Traxler did not have an independent duty to order blood work or ultrasound studies for purposes of routine HCC screening. Dr. Fugaro also disagrees with Dr. Hendifar that Dr. Nguyen-Traxler did not have a duty to recognize her patient's lapse in care with Dr. Ho. Under the standard of care, she should have known and documented the schedule of consultations with Dr. Ho's office and directed Bayberry staff to facilitate the appointments. Dr. Fugaro states that the failure to do so resulted in a situation where Mr. Rideau's mother, who had no professional duty of care to schedule her son's appointments, forgot to reschedule, and with no schedule maintained by Dr. Nguyen-Traxler, Mr. Rideau was lost to Dr. Ho's follow up. (*Id.*, ¶ 35.)

Dr. Fugaro opines that the standard of care compelled Dr. Nguyen-Traxler to be much more attentive in response to Decedent's significant weight loss when she wrote a progress note on August 20, 2020, documenting that he had lost 42 pounds in the last six months. In a patient with known severe cirrhosis and an elevated risk for HCC, unexplained weight loss of that magnitude should prompt the possibility of liver cancer as a first consideration, and a reasonable physician should undertake a rapid and complete workup rather than attribute the loss to diet and pandemic isolation. Dr. Nguyen-Traxler had no current cancer screenings for her patient, and in the absence of a workup ruling out HCC, a reasonable and prudent primary care physician could not assume the weight loss was a positive development rather than a sign of malignancy. As Mr. Rideau continued to rapidly lose weight, Dr. Nguyen-Traxler continued to characterize the loss as desirable, which could have discouraged Bayberry staff from investigating further. She had a duty to make accurate chart notes, but even after the last AFP test in June 2018 she continued through November 2020 to note that AFP was normal and there was no evidence of HCC or hepatoma, without any testing to support those entries. (*Id.*, ¶¶ 20, 35.)

Dr. Arora opines that the 2.0 cm lesion identified on the September 2019 ultrasound was not a benign cyst as contended by Dr. Gaensler, but rather a suspicious lesion inconsistent with simple cyst criteria

due to its internal echoes and irregular, ill-defined margins. (Arora Decl., ¶ 21.) Dr. Arora further opines that the standard portal venous phase CT obtained in the emergency room on September 18, 2019 was an inadequate follow-up study because hypervascular lesions such as HCC are not visible on that type of imaging, and that MRI would have detected the lesion. (*Id.*, ¶¶ 22, 34.) Dr. Arora additionally opines that Decedent's liver function, assessed by Child-Pugh classification, would have made him a candidate for ablative therapy in 2019, directly contradicting Dr. Hendifar's opinion that no curative treatment was available. (*Id.*, ¶ 35.)

Dr. Arora further opines that Dr. Gaensler's identification of a 5.91 x 4.10 cm hilar tumor on the September 2019 CT is inconsistent with the subsequent imaging record. Dr. Arora documents that the area identified by Dr. Gaensler as tumor measured approximately 3.6 x 3.2 cm on the November 2020 CT and 3.4 x 3.2 cm on the January 2021 CT, a reduction of nearly 40 percent in the absence of any treatment. Dr. Arora notes that an untreated malignant tumor usually does not shrink, and this progression evidence is inconsistent with Dr. Gaensler's characterization of the finding as advanced HCC. (*Id.*, ¶ 33.)

Dr. Arora's states "I disagree with Dr. Hendifar that Mr. Rideau did not die of untreated HCC to a reasonable degree of medical certainty." As support for this, Dr. Arora identifies the very high AFP levels in December 2020 and January 2021, enhancing tumor mass in the portal vein, pleural effusion, lung nodules, and infiltrating lesions on CT, all in the context of cirrhosis. (*Id.*, ¶ 36.) In Dr. Arora's assessment, had the 2019 lesion been evaluated with MRI, AFP testing, or biopsy, Decedent could have been treated with therapy such as ablation. Instead, no additional evaluation was performed, and by October 2020 he had a 3 cm lesion and additional findings consistent with the progression of untreated early stage HCC over the intervening period. (*Id.*, ¶ 37.)

Dr. Graves opines that had AFP and abdominal ultrasound screening been performed every six months as required by the standard of care and Dr. Ho's plan, the 2.0 cm lesion identified on the September 2019 ultrasound would have prompted follow-up MRI imaging, leading to a diagnosis of early-stage HCC between September 2019 and April 2020, at a point when multiple treatment options were still available. (Graves Decl., ¶ 25.) Dr. Graves agrees with Dr. Arora that the 2.0 cm lesion was most likely a tumor and not a cyst, and states that in retrospect it was likely early stage HCC that went undiagnosed until January 2021. (*Id.*, ¶ 23.) Dr. Graves states that if Decedent had the advanced findings on the September 2019 CT described by Dr. Hendifar, Decedent would not have survived to January 2021 without treatment. (*Id.*, ¶ 24.)

Dr. Graves states that in 2019 multiple treatment options were available for early stage HCC that were never offered to Decedent. Dr. Graves says there were minimally invasive procedures that could achieve reasonable tumor control and extended survival, with recurrent small lesions amenable to re-treatment for several years, and which would have given Decedent better than a 50 percent chance of survival for five or more years. (*Id.*, ¶ 26.) Dr. Graves states that the five-year survival rate for patients whose tumors are detected at an early stage and who receive treatment is 60 to 70 percent, and because Decedent was "full code" he would have pursued treatment options were available to him. (*Id.*, ¶ 27.) Dr. Graves further opines that the delayed diagnosis caused Mr. Rideau significant pain and suffering. According to Dr. Graves, the medical records reflect that in the final month of his life Mr. Rideau was very ill, weak, and in pain from advanced cancer, yet received no pain medication

until he was placed on hospice because no cancer diagnosis had been made. (*Id.*, ¶ 28.)

Having reviewed the parties' evidence, the Court turns to Defendants' reply arguments.

Defendants argue on reply that Plaintiffs cannot prove causation beyond speculation because there is no evidence that Decedent had HCC, and Plaintiff's expert Dr. Arora stated only that the September 2019 lesion was "highly suspicious" for early HCC. (Reply Brf., p. 3:4-5, citing Arora Decl. ¶ 34.) This argument fails for three reasons.

First, Dr. Arora also stated, "I disagree with Dr. Hendifar that Mr. Rideau did not die of untreated HCC to a reasonable degree of medical certainty. In December 2020 and January 2021, he had 'very, very high levels' of alpha-fetoprotein (AFP), enhancing tumor mass in his portal vein, pleural effusion, lung nodules, and infiltrating lesions shown on CT. In the context of cirrhosis of the liver, the cause of his death is HCC." (Arora Decl., ¶ 36.)

Second, Defendants' position is undermined by their own expert testimony. Dr. Gaensler opined that HCC was the more probable diagnosis. (Gaensler Decl., ¶¶ 6, 8.5, 8.5(c), 8.5(f) 8.5(g).) Dr. Hendifar stated declaration filed with the moving papers that Decedent "certainly" died due to complications related to metastatic liver cancer, and that HCC was the reasonable presumptive diagnosis. (Hendifar Decl., ¶ 8.)

Third, if Defendants wanted to raise this as a potentially dispositive issue, they needed to raise it in the moving papers. Defendant's Fact No. 72, which is the only fact asserting lack of causation in the separate statement, asserts: "No negligent act or omission by [Dr.] Nguyen-Traxler...was within a reasonable degree of medical probability, the legal cause of Dwayne Rideau's death," citing to Dr. Hendifar's Declaration at paragraphs 8, 11, and 12.0 through 12.9, Dr. Gaensler's Declaration at paragraphs 8 and 8.1 through 8.6, and Dr. Rosen's Declaration at paragraph 13 as evidentiary support.

The Court has reviewed the evidence cited in support of Defendants' Fact No. 72 and finds that it is not sufficient to shift the burden on a theory that Plaintiff cannot prove causation because HCC cannot be confirmed as a diagnosis. Dr. Hendifar's causation opinions at paragraphs 12.0 through 12.9 all assume HCC as the diagnosis. Dr. Gaensler states that the September 2019 tumor was "likely hepatocellular carcinoma." Dr. Rosen's declaration and her conclusion that "no amount of follow up, scans, labs or treatment was going to change the unfortunate progression of his disease process" likewise assumes HCC. Defendants' experts do not say that AFP and ultrasound surveillance protocol would have failed to detect whatever tumor was present, or that causation in this case fails because HCC cannot be diagnosed definitively.

The reply asserts another new argument, which is that Plaintiff does not raise a triable issue fact because a patient has the right to control healthcare decisions, and Plaintiff did not show that Bayberry could have, within the standard of care, "overrule[d] the independent decision-making by Mr. Rideau...through his surrogate decision-maker, Marlene Rideau." (Reply at 3:23-4:1.) "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (*Jay v. Mahaffey, supra*, 218 Cal.App.4th at 1538 [cleaned up], quoting *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.)

The argument also fails on the merits as far as it goes. Defendants seize on Dr. Fugaro's use of the

term “surrogate decision-maker” to describe Marlene Rideau’s functional role as the family member Bayberry communicated with about her son’s care. Ms. Rideau cancelled one appointment and said she would reschedule. There is nothing to suggest that Ms. Rideau refused specialist care on her son’s behalf, or had the authority to do so.

The parties present competing experts on standard of care and causation. Plaintiff’s experts opine that Dr. Nguyen-Traxler failed to maintain the HCC surveillance established by Dr. Ho, and that earlier detection of the September 2019 lesion would have allowed treatment at a time when Decedent had a greater than 50 percent chance of survival. Defendants’ experts, on the other hand, opine that Dr. Nguyen-Traxler reasonably relied on Dr. Ho to manage cancer surveillance and no earlier diagnosis would have altered the outcome. These conflicting opinions create triable issues of material fact on the first and fourth causes of action.

The Facility Defendants do not argue that they are entitled to summary adjudication independent of Dr. Nguyen-Traxler’s liability. Because the Court finds triable issues of material fact as to whether Dr. Nguyen-Traxler complied with the standard of care and whether her conduct was a substantial factor in causing the harm, the Court need not separately address whether Bayberry staff met the standard of care.

Summary adjudication of the first and fourth causes of action is denied.

B. Second Cause of Action for Elder Abuse (Issue No. 2)

To prevail on an a cause of action for elder neglect under the EADCPA, a plaintiff must prove by clear and convincing evidence that the defendant: (1) had responsibility for meeting the basic needs of an elder or dependent adult; (2) knew the elder or dependent adult could not provide for those basic needs; and (3) denied or withheld goods or services necessary to meet those basic needs, either with knowledge that injury was substantially certain or with conscious disregard of the high probability of injury. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 369, 406–407.)

Heightened remedies under the EADCPA do not apply to professional negligence; plaintiffs must prove something more than negligence—reckless, oppressive, fraudulent, or malicious conduct. (*Fenimore v. Regents of University of California* (2016) 245 Cal.App.4th 1339, 1348–1349.)

Where the claim is asserted against a corporation based on employee conduct, the plaintiff must show that an officer, director, or managing agent had advance knowledge of the employee’s unfitness and employed the person with conscious disregard of others’ rights or safety, or authorized or ratified the wrongful conduct. (Welf. & Inst. Code, § 15657(c); Civ. Code, § 3294.)

Defendants’ motion for summary adjudication of the elder abuse cause of action fails on two independent grounds.

First, on the question of recklessness, UMF No. 73 frames the argument as follows: “Because there was no breach of the standard of care to support a claim for medical negligence against Defendants, that necessarily means that no conduct by Defendants rose to the level of dependent adult abuse because dependent adult abuse requires much more egregious acts of malfeasance than the lesser claim of medical negligence.” Defendants make no independent argument that conduct falling below the standard of care would nonetheless fail to constitute recklessness. Because the Court finds that triable issues of material fact exist as to whether Defendants breached the standard of care, as

discussed in Section IV.A above, the elder abuse cause of action cannot be summarily adjudicated on this basis.

Dr. Fugaro opines that Dr. Nguyen-Traxler made unfounded assumptions, over an extended period, that Decedent was undergoing appropriate screening when he was not, that he was under the care of a liver specialist when he was not, and that his rapid weight loss was benign when it was in fact a manifestation of liver cancer. He further notes that she continued to enter progress notes stating "AFP normal, no evidence of HCC or hepatoma" despite the absence of any testing to support those conclusions. According to Dr. Fugaro, even after she began to suspect malignancy, Dr. Nguyen-Traxler failed to act with the urgency required in following up with the specialists, and she failed to inform Decedent's family of his significant weight loss or her concerns in time for them advocate on his behalf. (Fugaro Decl., ¶ 36.) Viewed in the light most favorable to Plaintiff, this evidence is sufficient to raise a triable issue of fact as to reckless neglect. (See, e.g., *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 89.)

On the corporate liability issue, Defendants argue that Plaintiffs lack evidence that any officer, director, or managing agent of GHC had knowledge of Decedent or authorized or ratified any wrongful conduct. (Mot., pp. 29:14–31:9; UMF No. 73.) Defendants have the burden-shifting backwards. A defendant moving for summary judgment may carry its initial burden either by presenting evidence that conclusively negates an element of the plaintiff's cause of action, or by presenting evidence that the plaintiff does not possess and cannot reasonably obtain the evidence needed to support that element. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 855.)

Defendants did neither. The managing-agent issue does not appear anywhere in Defendants' Separate Statement of Material Facts, and the declarations cited in support of UMF Nos. 73–75 (those of Drs. Hendifar, Gaensler, and Rosen) address only the elements of a professional negligence claim. None of these declarants offers evidence directed to the requirements for corporate liability under the EADCPA. Because Defendants failed to meet their initial burden on this issue, the burden never shifted to Plaintiffs to demonstrate a triable issue of fact regarding corporate liability.

Summary adjudication of the second cause of action is therefore denied.

C. Third Cause of Action for Violation of Resident Rights (Issue No. 3)

The third cause of action is for violation of Health and Safety Code section 1430 which provides that "[a] current or former resident or patient of a skilled nursing facility. ... may bring a civil action against the licensee of a facility who violates any rights of the resident or patient as set forth in the Patients Bill of Rights in Section 72527 of Title 22 of the California Code of Regulations, or any other right provided for by federal or state law or regulation." (Health & Safety Code, § 1430(b).)

Defendants' motion for summary adjudication of the third cause of action rests entirely on the premise that because Dr. Nguyen-Traxler and Bayberry met the standard of care, there was no violation of Decedent's rights. (Mot., 32:28–33:4; Defs.' SSF No. 76.) In other words, Defendants treat the third cause of action as rising or falling with the negligence claims.

Because the Court has found triable issues of material fact, summary adjudication of the third cause of action must also be, and is, denied.

D. Punitive Damages (Issue No. 5.)

Defendants seek adjudication of punitive damages solely on the theory that the elder abuse cause of action fails, presenting no independent ground for adjudication of the prayer. (Mot., 33:1-5; Defs.' SSF No. 79.)

Because the Court denies summary adjudication of the elder abuse cause of action, summary adjudication of the punitive damages claim is likewise denied.

V. Disposition

Based on the foregoing, the motion is denied in its entirety.

14. 9:00 AM CASE NUMBER: MSC22-00100

CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.

HEARING ON SUMMARY MOTION

FILED BY: ANN NGUYEN-TRAXLER, M.D.

TENTATIVE RULING:

Defendant Ann Nguyen-Traxler, M.D.'s Motion for Summary Judgment, or Summary Adjudication of Issues, is **denied**.

Background

This motion is one of two summary judgment motions in this case heard on the same calendar. The Court's ruling on the companion motion filed by GHC of Contra Costa, LLC, Life Generations Healthcare, and Dr. Nguyen-Traxler in her capacity as Medical Director (the "GHC ruling") is incorporated herein by reference. The factual background, the summary judgment standard, and the substantive analysis set forth in that ruling apply here and are not repeated. The evidentiary rulings in the GHC ruling are likewise incorporated.

Procedural

Code of Civil Procedure section 437c, subdivision (f)(1) provides in pertinent part: "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 251 ["Summary adjudication must completely dispose of the cause of action to which it is directed."] A motion that seeks to eliminate liability in one capacity while does not dispose of an entire cause of action and therefore does not satisfy this requirement.

Thus, the motion is procedurally improper to the extent it seeks summary adjudication of any cause of action based solely on a particular role. In addition, neither this motion nor the GHC motion differentiates between what Dr. Nguyen-Traxler did or did not do as attending physician versus Medical Director, or identifies any distinct duty arising from one role but not the other. Thus, even if the Court could summarily adjudicate a cause of action based on a role, the motions do not establish the entitlement to adjudication on such a basis.

Merits

For the reasons stated in the GHC ruling, the motion for summary judgment or summary adjudication is denied. Triable issues of material fact exist as to each cause of action asserted against Defendant.

Dr. Nguyen-Traxler's Separate Statement of Undisputed Material Facts filed in support of this motion ("Traxler UMF") tracks the GHC separate statement in all material respects. The basic clinical narrative, expert declarations, and legal theories are the same. However, the Traxler UMF includes facts not present in the GHC separate statement, including facts offered to show that Dr. Nguyen-Traxler did not receive Dr. Ho's progress notes before December 2020, that Bayberry did not have the fax number to which those notes were sent, and that she was unaware that Decedent had stopped attending the liver clinic after November 2018 and assumed Dr. Ho continued to manage his specialty care. The Traxler UMF also adds facts regarding Decedent's weight loss; namely, that there is no record of Decedent being weighed between June 5 and September 10, 2020, and that, because there were no recorded weights in July and August 2020, Dr. Nguyen-Traxler believes she learned of the weight loss from Bayberry staff rather than through her own observation. (Traxler UMF Nos. 12, 14, 19, 21, 26, 31, 34, 46, 47, 55, 57, 60, 63.)

These matters were addressed in the GHC ruling as part of the disputed factual record on the standard of care. As noted there, the parties dispute whether Dr. Nguyen-Traxler received Dr. Ho's notes and whether she had an independent obligation to inquire into and maintain the HCC surveillance schedule regardless of what she received from Dr. Ho. Plaintiffs also dispute the additional weight-loss facts, noting that Dr. Nguyen-Traxler's August 20, 2020 chart note reflects a 42-pound loss, showing that someone was weighing Decedent, and that the failure to investigate this weight loss violated the standard of care, as stated by Dr. Fugaro. Dr. Fugaro also opined that the standard of care required Dr. Nguyen-Traxler to understand her role in the co-management relationship with outside specialists, to maintain awareness of the HCC surveillance schedule, and to recognize and respond to lapses in care, independent of whether she received Dr. Ho's notes. Dr. Fugaro's opinion raises a triable issue regardless of notice.

Dr. Nguyen-Traxler adds two facts directed to the EADCPA cause of action, including that she did not deliberately make false entries in her progress notes falsely representing that she had ordered AFP testing for Decedent and the tests were normal and that she did not do so in her role as Bayberry's medical director. (Traxler UMF Nos. 88-99.) These additional facts do not change the outcome. Summary adjudication of the elder abuse cause of action is denied for the reasons explained in the GHC ruling, including because Defendants rely entirely on their negligence theory to argue that no recklessness occurred, and because the evidence, viewed in the light most favorable to Plaintiff, is sufficient to raise a triable issue of fact on the issue of neglect. (GHC ruling, Section IV.B; Fugaro Decl., ¶ 36; *Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 89.)

Disposition

Based on the foregoing, the motion is denied.

15. 9:00 AM CASE NUMBER: MSC17-02207

CASE NAME: DIMITRIJEVIC VS. EKE MOTORSPORTS

HEARING ON ORDER OF EXAMINATION IN RE: FOR DEBTOR: DANNY SUN (CONTINUED FROM:
03.13.2026)

FILED BY:

TENTATIVE RULING

PARTIES TO APPEAR.